

MLRP 13755 Diplomat LLC
TDIndustries, Inc.
13755 Diplomat Drive, Ste, 200, Farmers Branch, TX

INDUSTRIAL LEASE AGREEMENT

THIS INDUSTRIAL LEASE AGREEMENT (this “Lease”) is made as of the “Lease Date” (as defined in Section 36 hereof) by and between **MLRP 13755 Diplomat LLC**, a Delaware limited liability company (“Landlord”), and **TDIndustries, Inc.**, a Texas corporation (“Tenant”) (the words “Landlord” and “Tenant” to include their respective legal representatives, successors and permitted assigns where the context requires or permits).

WITNESSETH

1. Basic Lease Provisions. The following constitute the basic provisions of this Lease:

- (a) Demised Premises: As defined in Section 2.
- (b) Demised Premises Square Footage: +/- 50,000 square feet
- (c) Building Square Footage: +/- 199,868 square feet.
- (d) Annual Base Rent:

<u>Time Period</u>	<u>Annual Base Rent</u>
Months 1 to 12	\$512,500.00*
Months 13 to 24	\$533,000.00
Months 25 to 36	\$554,500.00
Months 37 to 48	\$576,500.00
Months 49 to 60	\$599,500.00
Months 61 to 63	\$155,875.00 (for a three (3) month period)

- (e) Monthly Base Rent Installments:

<u>Time Period</u>	<u>Monthly Base Rent</u>
Months 1 to 12	\$42,708.33*
Months 13 to 24	\$44,416.67
Months 25 to 36	\$46,208.33
Months 37 to 48	\$48,041.67
Months 49 to 60	\$49,958.33
Months 61 to 63	\$51,958.33

*Notwithstanding any other provision of this Lease to the contrary, provided that no Event of Default (as defined in Section 22 hereof) has occurred, Tenant’s obligation to pay (i) Base Rent and Additional Rent (consisting of the Operating Expenses and Taxes) shall abate for the period from the Commencement Date through February 28, 2026 (the “Gross Rent Abatement Period”) and (ii) Base Rent for the first three (3) full calendar months of the Term following the Gross Rent Abatement Period (the “Base Rent Abatement Period” and collectively referred to herein with the Gross Rent Abatement Period as the “Abatement Period”). In the event that the Commencement Date falls on a date other than the first day of a calendar month, Tenant shall pay pro-rated Base Rent for such partial month and the Abatement Period shall commence on the first day of the immediately subsequent full calendar month. If there is an occurrence of an Event of Default at any time prior to or during the Abatement Period, then all Base Rent so conditionally abated during the Abatement Period shall come due immediately upon demand by Landlord and if such Event of Default occurs prior to or during the Abatement Period, the reduced Base Rent amounts during the Abatement Period shall, without notice or further action by Landlord, immediately terminate (as of the date of the Event of Default) and be replaced with the Monthly Base Rent amount set forth above.

(f) Commencement Date: The Lease Date, provided that, access to or possession of the Demised Premises shall not be given to Tenant until Tenant has deposited with Landlord the Security Deposit, first full months’ rent payment and insurance certificates evidencing the insurance required by this Lease. At Landlord’s option, the Commencement Date shall be confirmed pursuant to a Term Commencement Letter substantially in the form attached hereto as Exhibit “D” and forming a part hereof.

(g) Expiration Date: The last day of the sixty-third (63rd) full calendar month following the Commencement Date.

(h) Term: Sixty-three (63) full calendar months after the Commencement Date (plus a partial month if the Commencement Date does not fall on the first day of a calendar month), unless renewed or sooner terminated in accordance with the provisions of this Lease.

- (i) Tenant’s Operating Expense and Tax Percentage: 25.02%
- (j) Security Deposit: \$64,042.00

(k) Permitted Use: Mechanical construction, pre-fabrication and manufacturing activities (up to and including cutting, grinding, and welding metal pipes), metal fabrication, warehousing and distribution of

construction products, general office use ancillary thereto and the use of the Outdoor Storage Area (as defined below) pursuant to the terms of Section 46 hereof.

(l) Address for notice:

Landlord: c/o ML Realty Partners, LLC
One Pierce Place, Suite 450-W
Itasca, Illinois 60143
Attn: Asset Management
Email: bsalomone@mlrealtypartners.com

Tenant: TDIndustries, Inc.
13850 Diplomat Drive
Dallas, Texas 75234.
Attn: Tim McNew
Email: tim.mcnew@tdindustries.com

(m) Address for rental payments:

c/o Holt Lunsford Commercial
5950 Berkshire Lane, Suite 900
Dallas, Texas 75225

Tenant acknowledges that all rental payments shall be made through wire transfer, ACH or direct deposit of immediately available federal funds as provided in Section 4(b) below unless otherwise approved in writing by Landlord, which approval may be withheld in Landlord’s sole discretion.

(n) Brokers: Bob Hagewood & Todd Noonan of Stream Realty Partners (for Tenant)
Sarah Ozanne & Mac Hall of Stream Realty Partners (for Landlord)

(o) Intentionally Omitted.

(p) Exhibits: The following Exhibits attached to this Lease are incorporated herein by this reference and shall be deemed as a part of this Lease:

Exhibit “A”	Demised Premises/Property – Site Plan
Exhibit “B”	Intentionally Omitted
Exhibit “C”	Intentionally Omitted
Exhibit “D”	Term Commencement Letter
Exhibit “E”	Estoppel Certificate
Exhibit “F”	Rules and Regulations
Exhibit “G”	Certificate of Authority
Exhibit “H”	Intentionally Omitted
Exhibit “I”	Additional Provisions
Exhibit “J”	Broom Clean and Repair Requirements

2. **Demised Premises.** For and in consideration of the rent hereinafter reserved and the mutual covenants hereinafter contained, and upon all the terms and provisions of this Lease, (i) Landlord does hereby lease and demise unto Tenant, and Tenant does hereby lease and accept from Landlord the premises (the “Demised Premises”) known as Suite 200 (as crosshatched on Exhibit “A” attached hereto and incorporated herein), located within a building (the “Building”) at 13755 Diplomat Drive, Farmers Branch, Texas, which is situated on the land (“Land”) described or depicted on Exhibit “B” attached hereto and incorporated herein (the Building, the Land and any other improvements from time to time situated thereon being collectively referred to herein from time to time as the “Property”); and (ii) Landlord also grants to Tenant a non-exclusive right to use, in common with other tenants of the Building (and the employees, guests and other invitees of such tenants), all landscaped areas, driveways, sidewalks, parking areas and curb cuts located on the Land and any other such areas outside of the Property that are provided and designated from time to time for the general non-exclusive use and convenience of Tenant and of other parties having common use of such areas and their respective authorized representatives and invitees (collectively, “Common Areas”), subject to such reasonable rules and regulations as Landlord may from time to time establish. Tenant shall have the non-exclusive right to use up to forty (40) car parking spaces in the Property’s car parking lot for its employees, customers and other invitees. Tenant shall have the nonexclusive right to use the Common Areas for the purposes intended, subject to such reasonable rules and regulations as may be established from time to time. Tenant shall not interfere with the rights of any or all of Landlord, other tenants or licensees, or any other person entitled to use the Common Areas. Without limitation of the foregoing, Tenant shall not store any property, park or store any vehicles or trailers on, or conduct truck loading and unloading activities in, the Common Areas in a manner that unreasonably disturbs, disrupts or prevents the use of the Common Areas by Landlord, other tenants or licensees or other persons entitled to use the Common Areas. Landlord, from time to time, may change any or all of the size, location, nature and use of any of the Common Areas although such changes may result in an inconvenience to Tenant, so long as such changes do not materially and adversely affect Tenant’s use of the Demised Premises. In addition to the foregoing, Landlord may, upon reasonable notice to Tenant, close or suspend access to any Common Areas to perform any acts in the Common Areas as, in Landlord’s reasonable judgment, are desirable to improve or maintain either or both of the Demised Premises and the Property; provided, however, that Landlord shall use reasonable efforts to limit any disruption of Tenant’s use and operation of the Demised Premises in connection therewith. Landlord reserves the right to grant easements on the Land, to allow third parties to use all internal access ways constructed on the Land, to make boundary adjustments to the Land, and to dedicate for public use portions of the Land, including

without limitation any public streets or any other improvements, without Tenant's consent, provided that no such grant or dedication shall materially interfere with Tenant's use or quiet enjoyment of the Demised Premises or otherwise cause Tenant to incur any additional cost or expense.

3. Term. Subject to Section 1(f), Tenant shall have and hold the Demised Premises for a term (the "Term") commencing on the Commencement Date and ending on the Expiration Date, unless renewed or terminated in accordance with the provisions of this Lease. The initial term of this Lease specified in Section 1(h) is hereinafter sometimes referred to as the "Primary Term". If this Lease is not fully executed by the Commencement Date, the Commencement Date and the Expiration Date shall be advanced by one day for each day of delay. If Landlord shall be unable to give possession of the Demised Premises on the Commencement Date for any reason Landlord shall not be liable for any damages caused thereby nor shall this Lease be void or voidable, however, the Rent shall not commence until the Demised Premises are available for occupancy by Tenant, at which time the Term shall commence so as to give effect to the full stated Term.

4. Base Rent.

(a) Tenant shall pay to Landlord at the address set forth in Section 1(m), as base rent for the Demised Premises, commencing on the Commencement Date and continuing throughout the Term in lawful money of the United States, the annual amount set forth in Section 1(d), payable in equal monthly installments as set forth in Section 1(e) (the "Base Rent"), payable in advance, without demand and without abatement (except as expressly provided in this Lease), reduction, set-off or deduction, on the first day of each calendar month during the Term. Notwithstanding any other provision of this Lease to the contrary, upon Tenant's execution of this Lease, Tenant will pay the first full month's rent in advance. If the Commencement Date shall fall on a day other than the first day of a calendar month, the Base Rent shall be apportioned prorata on a per diem basis for the period between the Commencement Date and the first day of the following calendar month. If the Term ends on a day other than the last day of a calendar month, Base Rent shall likewise be apportioned prorata on a per diem basis for the calendar month in which expiration or termination occurs.

(b) Base Rent and Additional Rent payable to Landlord under this Lease shall be paid only by electronic funds transfer debit transactions through wire transfer, ACH or direct deposit of immediately available federal funds and shall be initiated by Tenant for settlement on or before the applicable date for payment in each case; provided, however, if the date for payment is not a business day, then settlement shall be made on the next business day. Landlord shall provide Tenant with appropriate wire transfer, ACH and direct deposit information in a notice from Landlord to Tenant. Tenant shall not be permitted to pay by check, money order or cash without Landlord's prior written consent, which consent may be withheld in Landlord's sole discretion. Landlord may change the account to which such payment from Tenant shall be directed with thirty (30) days prior written notice to Tenant. No payment by Tenant or receipt by Landlord of rent hereunder shall be deemed to be other than on account of the amount due, and no endorsement or statement on any check or any letter accompanying any check, or other form of payment of rent shall be deemed an accord and satisfaction, and Landlord may accept such funds, as payment without prejudice to Landlord's right to recover the balance of such installment or payment of rent or pursue any other remedies available to Landlord.

5. Security Deposit. Simultaneously with the execution of this Lease, Tenant will pay to Landlord the sum set forth in Section 1(j) of the Basic Lease Provisions as security for the full and faithful performance by Tenant of each and every term, covenant and condition of this Lease. The Security Deposit will not bear interest and may be commingled with other funds of Landlord. In the event that Tenant is in default under this Lease, or fails to perform any of the terms, provisions, covenants, or conditions of this Lease, Landlord may use, apply, or retain the whole or any part of the security so deposited for the payment of any sum due Landlord or which Landlord may expend or be required to expend by reason of Tenant's default or failure to perform, including, but not limited to, any damages or deficiency in the reletting of the Demised Premises; provided, however, that any such use, application or retention by Landlord of the whole or any part of the Security Deposit shall not be or be deemed to be an election of remedies by Landlord or viewed as liquidated damages, it being expressly understood and agreed that, notwithstanding such use, application or retention, Landlord shall have the right to pursue any and all other remedies available to it under the terms of this Lease or otherwise. In the event that Landlord uses or applies any portion of the Security Deposit as hereinabove provided, Tenant shall replenish such applied portions thereof within five (5) days of Landlord's demand and Tenant's failure to do so within such five (5) day period shall be deemed an Event of Default hereunder. In the event that Tenant has fully complied with all of the terms, covenants and conditions of this Lease and any modifications, extensions or renewals thereof, as determined by Landlord in its sole discretion, the Security Deposit shall be returned to Tenant within thirty (30) days after delivery of possession of the Demised Premises to Landlord. In the event of a sale of the Building, Landlord shall transfer the Security Deposit to the purchaser, and Landlord shall thereupon be released from all liability for the return of the Security Deposit. Tenant shall look solely to the new Landlord for the return of the Security Deposit. Tenant shall not assign or encumber the money deposited as security, and neither Landlord nor its successors or assigns shall be bound by any such assignment or encumbrance.

6. Operating Expenses, Taxes and Additional Rent.

(a) Commencing on the Commencement Date, Tenant agrees to pay as Additional Rent (as defined in Section 6(d) below) its proportionate share of Operating Expenses and Taxes (as such terms are hereinafter defined). "Operating Expenses" shall be defined as all costs and expenses paid or incurred by Landlord in connection with the ownership and operation of the Land and Building including, without limitation, costs and expenses for management, operation, repair, replacement and maintenance as necessary to keep the Property, including driveways, parking areas, landscaped areas and other Common Areas fully operational and in good order, condition and repair, including but not limited to, (i) wages, salaries, fringe benefits and payroll burden for employees utilized in the management of the Property; (ii) exterior window cleaning, exterior painting, façade maintenance, maintenance of all water retention facilities, discharge piping, sewer lines, fountains, pumps, catch basins and other facilities, both on

and off site, utilities for the Common Areas; (iii) expenses associated with the driveways and parking areas (including paving, sealing and restriping, and snow, trash and ice removal), roofs, fire detection and fire prevention sprinkler systems, non-tenant-specific security systems, lighting facilities, landscaped areas and landscaping sprinkler systems, walkways, directional signage, curbs and drainage strips, relating to the Property; (iv) all charges assessed against or attributed to the Land or the Building pursuant to any operating declaration or similar agreement governing the operation, maintenance or improvement of the Property or any other Common Area ("Protective Covenants"); (v) property management fees; (vi) all insurance premiums paid by Landlord with respect to insurance Landlord may carry from time to time in respect of the Property, together with deductibles; and (vii) costs of capital improvements applicable to the Property generally (and not because of the particular use of the Building by a particular tenant and subject to the limitations set forth in Section 6(b)(7) below), which cost shall be amortized on a straight line basis over the useful life of such improvement, as reasonably determined by Landlord, together with a finance charge equal to the greater of (i) 10% per annum and (ii) the "Prime Rate" (as defined in Section 33 of this Lease) plus 2% per annum. Operating Expenses shall not include: (1) depreciation, interest and principal payments on mortgages and other debt costs; (2) real estate brokers' leasing commissions or compensation; (3) any cost or expenditure (or portion thereof) for which Landlord is reimbursed, whether by insurance proceeds or otherwise; (4) the cost of any service or improvements furnished to any other occupant of the Building which Landlord does not provide to Tenant hereunder; (5) advertising and promotional expenses; (6) federal or other income and franchise taxes of Landlord (other than any taxes which may be imposed upon rents); and (7) costs of correcting any latent defects with respect to the structural elements of the Building (provided that the foregoing items shall not be excluded if the need for any such costs arises in any material respect out of any breach of the Lease by Tenant or any negligent act or omission by Tenant or any of the Tenant's Affiliates); the costs described in the foregoing items (1) through (7) shall be the sole and exclusive responsibility of Landlord. Notwithstanding any other provision herein to the contrary, it is agreed that if either the Building or Property is not fully occupied during all or any portion of a calendar year, then an adjustment may be made in computing the Operating Expenses for such calendar year so that the Operating Expenses are computed as though the Building or Property (whichever is applicable) had been fully occupied. To the extent that Landlord (or an affiliate thereof) incurs any expenses (such as, by way of illustration only, multi-property service contracts or blanket insurance policies) in respect of the Property and any other properties owned by Landlord, Landlord may include a fair and equitable apportionment of such expenses in Operating Expenses.

(b) The proportionate share of Operating Expenses and Taxes to be paid by Tenant with respect to the Property or any portion thereof shall be a percentage of the Operating Expenses and Taxes based upon the proportion that the stipulated square footage of the Demised Premises bears to the total stipulated square footage of the Building (such figure being referred to as "Tenant's Operating Expense and Tax Percentage" and set forth in Section 1(i)). Landlord shall estimate the total amount of Operating Expenses and Taxes to be paid by Tenant during each calendar year and shall provide such estimate to Tenant prior to or with reasonable promptness after the beginning of each calendar year during the Term. Tenant shall pay to Landlord one-twelfth (1/12) of such sum on the first day of each calendar month during each such calendar year, or part thereof, during the Term. Landlord may during the course of any year, redetermine the amount of its estimate of Operating Expenses and Taxes for such year and adjust the amount of estimated Additional Rent accordingly, whereupon Tenant shall pay the adjusted estimated Additional Rent from and after the first day of the month following the month in which Landlord delivers to Tenant written notice of such adjustment of estimated Additional Rent. If the Commencement Date shall fall on a day other than the first day of the calendar year, and/or if the Expiration Date shall fall on a day other than the last day of the calendar year, Tenant's proportionate share of the Operating Expenses and Taxes for such calendar year shall be apportioned prorata. No interest shall be payable to Tenant on account of payments of estimated Additional Rent, and such payments may be commingled. If there exists any dispute as to (i) the amount of Additional Rent, (ii) whether a particular expense is properly included in Additional Rent or (iii) Landlord's calculation of Additional Rent (each an "Additional Rent Dispute"), the events, errors, acts or omissions giving rise to such Additional Rent Dispute shall not constitute a breach or default by Landlord under this Lease and even if a judgment resolving the Additional Rent Dispute is entered against Landlord, this Lease shall remain in full force and effect and Landlord shall not be liable for any consequential damages resulting from the event, error, act or omission giving rise to such Additional Rent Dispute. Notwithstanding the existence of an Additional Rent Dispute, Tenant shall pay timely the amount of Additional Rent which is in dispute and will continue to make all subsequent payments of Additional Rent as and when required under this Lease, provided that the payment of such disputed amount and other amounts shall be without prejudice to Tenant's position.

Landlord agrees that notwithstanding anything in this Section 6 to the contrary, the maximum amount Tenant shall be required to pay for Controllable Operating Expenses (defined below) applicable to the 2028 calendar year during the Term shall be the lesser of (a) the actual Controllable Operating Expenses for such calendar year or (b) the annualized sum of the actual Controllable Operating Expenses for the 2027 calendar year plus ten percent (10%) (such sum is the "Cap Amount"). The Controllable Operating Expenses applicable to each calendar year thereafter shall be the lesser of (x) the actual Controllable Operating Expenses during the applicable calendar year, or (y) the sum of the Cap Amount for the immediately preceding calendar year plus ten percent (10%). "Controllable Operating Expenses" shall mean all Operating Expenses other than expenses related to insurance, collectively bargained union wages, snow removal, property management fees, maintenance, repairs and replacements (but not landscaping service contracts) and electricity and other utilities (herein, "Non-controllable Expenses"). There shall be no cap on Non-controllable Expenses.

Assume for example, Tenant's Operating Expense and Tax Percentage of Controllable Operating Expenses in the first calendar year is \$100.00. In the second calendar year, Tenant's share of Controllable Expenses would be the lesser of (a) the actual Tenant's Operating Expense and Tax Percentage of such Controllable Operating Expenses or (b) \$110.00 [\$100.00 plus 10%], which would be the Cap Amount. In the third calendar year, Tenant's share of Controllable Operating Expenses would be the lesser of (x) the actual Tenant's Operating Expense and Tax Percentage of such Controllable Operating Expenses or (y) \$121.00 [\$110.00 plus 10%], which becomes the Cap Amount for the following year.

(c) “Taxes” shall be defined as real estate and ad valorem taxes, assessments, sewer rents, rates and charges, transit taxes, parking taxes, taxes based upon the receipt of rent, and any other federal, state or local governmental charge, general, special, ordinary or extraordinary, which are levied or assessed or become a lien against the Property or any portion thereof or are payable in any calendar year during the Term and any tax in substitution of any of the foregoing, provided that real estate taxes shall be paid on an accrual basis. Taxes shall not include any franchise, capital, stock, transfer, inheritance or income (other than rental income) tax imposed on Landlord. In case of special taxes or assessments which may be payable in installments, only the amount of each installment and interest paid thereon paid during a calendar year shall be included in taxes for that calendar year. Taxes shall also include any personal property taxes (attributable to the year in which paid) imposed upon the furniture, fixtures, machinery, equipment, apparatus, systems and appurtenances of Landlord used in connection with the operation of the Building. Taxes also include Landlord’s costs and expenses (including attorneys’ fees) in contesting or attempting to reduce any taxes. Tenant agrees to cooperate at all times with Landlord in connection with any such contests or attempts by providing all information and executing all documents that are reasonably required in connection therewith. Tenant shall not be permitted to contest or attempt to reduce taxes. **Section 41.413 of the Texas Property Tax Code may give Tenant the right to protest before the appropriate appraisal review board a determination of the appraised value of the Property if Landlord does not so protest and requires Landlord to deliver to Tenant a notice of any determination of the appraised value of the Property. Tenant acknowledges that the Property is a multi-tenant facility, that any filing of a protest of appraised value by Tenant will give the appraisal district discretion to increase or decrease the appraised value, that an increase in the appraised value will affect Landlord and the other tenants of the Property, and that an increase in the appraised value may increase the taxes not only for the year in question but for future years, potentially beyond expiration of the Lease Term. Accordingly, to the extent permitted by applicable law, Tenant hereby waives the provisions of §41.413 of the Texas Property Tax Code (or any successor thereto). In the alternative, if §41.413 of the Texas Property Tax Code may not be waived, Tenant agrees not to protest any valuation unless Tenant notifies Landlord in writing of Tenant’s intent so to protest and Landlord fails to protest the valuation within fifteen (15) days after Landlord receives Tenant’s written notice. If Tenant files a protest without giving the written notice required by the preceding sentence, such filing shall be an event of default under this Lease without the necessity of any notice from Landlord, notwithstanding any other provisions of this Lease to the contrary. Furthermore, if Tenant exercises the right of protest granted by §41.413 of the Texas Property Tax Code, Tenant shall be solely responsible for, and shall pay, all costs of such protest. If as a result of any protest filed by Tenant, the appraised value of the Property is increased by the appraisal board, Tenant shall be solely responsible for, and shall pay upon demand by Landlord, all taxes (not only Tenant’s Tax Percentage of Real Estate Taxes) assessed against the Property in excess of the taxes which would have been payable in the absence of the protest. Tenant shall continue to pay such excess taxes until the determination of appraised value of the Property is changed by the appraisal review board, *regardless of whether the increased taxes are incurred during the term of this Lease or thereafter*. Landlord agrees, upon request by Tenant, to provide to Tenant a copy of the determination of appraised value for any year. The payment obligations of Tenant under this Section 6(c) shall survive the expiration or other termination of this Lease.**

(d) This shall be a net lease and Base Rent shall be paid to Landlord absolutely net of all costs and expenses, except as herein provided. The provisions for payment of Operating Expenses and the Taxes are intended to pass on to Tenant and reimburse Landlord for all costs and expenses incurred in connection with ownership and operation of the Demised Premises and the Property and such additional facilities now and in subsequent years as may be determined by Landlord to be necessary to the Property. Any amounts required to be paid by Tenant under this Lease (in addition to Base Rent) and any charges or expenses incurred by Landlord on behalf of Tenant under the terms of this Lease shall be considered “Additional Rent” payable in the same manner and upon the same terms and conditions as the Base Rent except as set forth herein to the contrary (all such Base Rent and Additional Rent sometimes being referred to collectively herein as “Rent”). Any failure on the part of Tenant to pay such Additional Rent when and as the same shall become due shall entitle Landlord to the remedies available to it for non-payment of Base Rent. Tenant’s obligations for payment of Additional Rent shall begin to accrue on the Commencement Date. No sum shall be deemed to have been paid under this Lease unless and until such time as Landlord is in actual receipt of such payment in immediately available good funds.

(e) If applicable in the jurisdiction where the Demised Premises are located, Tenant shall pay and be liable for all rental, sales, use and inventory taxes or other similar taxes, duties or tariffs, if any, on the amounts payable by Tenant hereunder levied or imposed by any city, state, county or other governmental body having authority, such payments to be in addition to all other payments required to be paid to Landlord by Tenant under the terms of this Lease. Tenant shall have no responsibility for any income tax of any nature payable by Landlord. Such payment shall be made by Tenant directly to such governmental body if billed to Tenant, or if billed to Landlord, such payment shall be paid concurrently with the payment of the Base Rent, Additional Rent, or such other charge upon which the tax is based, all as set forth herein.

(f) Within a reasonable time after the end of each calendar year, Landlord shall submit to Tenant a statement of the actual amount of Operating Expenses and Taxes for such calendar year, and the actual amount owed by Tenant, and within thirty (30) days after receipt of such statement, Tenant shall pay any deficiency between the actual amount owed and the estimates paid during such calendar year. In the event of an overpayment, Landlord shall, at the option of Landlord, credit the amount of such overpayment toward the next installment of Operating Expenses and Taxes owed by Tenant or remit such overpayment to Tenant. Tenant or its representative shall have the right to audit or examine Landlord’s books and records with respect to the items in Landlord’s annual statement during normal business hours at any time within thirty (30) days following the furnishing by Landlord to Tenant of such statement. Unless Tenant shall take written exception to any item within sixty (60) days after the furnishing of the foregoing statement, such statement shall be considered as final and conclusively accepted by Tenant. Subject to the terms of this Section 6(f), if Tenant’s audit of Operating Expenses or Taxes for any calendar year indicates that Tenant was overcharged, Landlord shall credit to Tenant against next Additional Rent payments due from Tenant the amount of such overpayment, and if any overpayment exists at the end of the Term, Landlord shall

pay the remaining balance of such overpayment to Tenant within thirty (30) days after the date of receipt of such written notice from Tenant regarding the audit. In the event Tenant's audit reveals that there has been an understatement of Operating Expenses and/or Taxes, Tenant shall, within thirty (30) days thereafter, pay such deficiency to Landlord. If any review or audit of the Operating Expenses correctly reveals that Landlord charged Tenant more than one hundred five percent (105%) of the actual amount of the Operating Expenses for the year in question, Landlord shall reimburse Tenant for the reasonable audit costs of financial professionals engaged to perform such review (not to exceed a total of \$3,000.00). Any representative retained by Tenant shall be a licensed public accounting firm or an audit firm or department within a real estate services company, which, in either case, is not compensated on a contingent fee basis. Tenant shall maintain the results of each such audit confidential; provided, that Tenant shall not be deemed to have violated the foregoing confidentiality covenant if Tenant discloses any of such confidential audit information (i) to Tenant's affiliates, officers, directors, employees, attorneys, appraisers, accountants and other third parties engaged by Tenant in connection with its audit; (ii) in connection with any litigation or other dispute resolution proceeding between Landlord and Tenant pertaining to this Lease; or (iii) if required by applicable law, court order or governmental process. If Landlord does not agree with the results of Tenant's audit, Landlord and Tenant shall negotiate with each other in good faith to attempt to resolve the dispute. If the dispute is not settled by agreement between the parties within thirty (30) days after notice has been delivered to Landlord, the dispute shall be determined by a firm of independent certified public accountants with not less than ten (10) years' experience in commercial leasing matters in the Dallas Fort Worth metropolitan area (the "Accountant"), which firm shall be mutually acceptable to Landlord and Tenant. The Accountant, Landlord and Tenant each shall have the right to review all records relating to the disputed items, and the parties shall be granted a hearing before the Accountant prior to the rendering of a determination by the Accountant. The determination of the Accountant shall be made within thirty (30) days after the Accountant is selected, and shall be final, binding, and conclusive upon the parties and Tenant and the expenses involved in such determination shall be borne by the party against whom the decision is rendered by the Accountant; provided, if more than one item is disputed and the decision shall be against such party in respect of any item or items so disputed, the expenses shall be apportioned based on the weighted average dollar amounts allocated to such items. If, at the time of such disagreement, Landlord and Tenant have not agreed upon and selected the Accountant, Landlord and Tenant shall each select an Accountant, and such Accountant shall select a third Accountant; the third Accountant shall act as the "Accountant" for purposes of this Section.

(g) Landlord and Tenant acknowledge that each of them is knowledgeable and experienced in real estate transactions. Landlord and Tenant agree that each provision of this Lease for determining charges, amounts and additional rent payable by Tenant (including, without limitation, payments under the provisions of this Section 6 above) is commercially reasonable and, as to each such charge or amount, constitutes a "method by which the charge is to be computed" for purposes of Section 93.012 of the Texas Property Code, and agree that the provisions of this Lease for determining charges, amounts and additional rent payable by Tenant (including, without limitation, payments under the provisions of this Section 6 above) are commercially reasonable and valid even though such methods may not state a precise mathematical formula for determining such charges. ACCORDINGLY, TENANT VOLUNTARILY AND KNOWINGLY WAIVES ALL RIGHTS AND BENEFITS OF TENANT UNDER SECTION 93.012 OF THE TEXAS PROPERTY CODE, as such section may from time to time be amended. Nothing contained in this Section 6(g) shall constitute a waiver of Tenant's rights to dispute and/or contest Landlord's calculations of such charges, amounts and additional rent or Tenant's audit rights hereunder.

7. Use of Demised Premises.

(a) The Demised Premises shall be used for the Permitted Use set forth in Section 1(k) and for no other purpose.

(b) Tenant will permit no liens to attach or exist against the Demised Premises, and shall not commit any waste.

(c) The Demised Premises shall not be used for any illegal purposes, and Tenant shall not allow, suffer, or permit any unreasonable vibration, noise, odor, light or other effect to occur within or around the Demised Premises that constitutes a nuisance or trespass for Landlord or any occupant of an adjoining building, its customers, agents, or invitees, other than normal odors, noises, or vibrations associated with mechanical construction, pre-fabrication and manufacturing activities (up to and including cutting, grinding, and welding metal pipes), metal fabrication, warehousing and distribution of construction products. Upon notice by Landlord to Tenant that any of the aforesaid prohibited uses are occurring, Tenant agrees to promptly remove or control the same.

(d) Tenant shall not in any way violate any law, ordinance or restrictive covenant affecting the Demised Premises, and shall not in any manner use the Demised Premises so as to cause cancellation of, prevent the use of, or increase the rate of, the fire and extended coverage insurance policy required hereunder. Landlord makes no (and does hereby expressly disclaim any) covenant, representation or warranty as to the Permitted Use being allowed by or being in compliance with any applicable laws, rules, ordinances or restrictive covenants now or hereafter affecting the Demised Premises, and any zoning letters, copies of zoning ordinances or other information from any governmental agency or other third party provided to Tenant by Landlord or any of Landlord's agents or employees shall be for informational purposes only, Tenant hereby expressly acknowledging and agreeing that Tenant shall conduct and rely solely on its own due diligence and investigation with respect to the compliance of the Permitted Use with all such applicable laws, rules, ordinances and restrictive covenants and not on any such information provided by Landlord or any of its agents or employees.

(e) In the event insurance premiums pertaining to the Demised Premises, the Building, the Property, or the Common Areas, whether paid by Landlord or Tenant, are increased over the least hazardous rate available due to the nature of the use of the Demised Premises by Tenant, Tenant shall pay such additional amount as Additional Rent.

(f) Tenant will not commit waste, overload the Building's structure or the Building's systems or subject the Demised Premises to any use that would damage the Demised Premises. Tenant, at its sole cost and expense, shall obtain and keep in effect during the term, all permits, licenses, and other authorizations necessary to permit Tenant to use and occupy the Demised Premises for the Permitted Use in accordance with applicable law.

8. Insurance.

(a) Tenant covenants and agrees that from and after the Commencement Date or any earlier date upon which Tenant enters or occupies the Demised Premises or any portion thereof, Tenant will carry and maintain at its sole expense and keep in force the following types of insurance (provided, however, in no event shall the limits of such insurance be considered as limiting the liability of Tenant under this Lease):

(i) Commercial general liability insurance naming Landlord, ML Realty Partners LLC, "Mortgagee" (as defined in Section 24 of this Lease) and any other party reasonably designated by Landlord as an additional insured and loss payee as their respective interests may appear, covering acts of the named insured and additional insured against any and all claims for bodily injury and property damage occurring in, or about the Demised Premises arising out of Tenant's use and occupancy of the Demised Premises. Tenant shall provide Landlord with endorsements evidencing such additional insured status in such form as may be acceptable to Landlord prior to the Commencement Date. Such insurance shall have a combined single limit of not less than One Million Dollars (\$1,000,000.00) per occurrence with a Two Million Dollars (\$2,000,000.00) aggregate limit. Such liability insurance shall be (i) written on ISO Form CG 00 01 or an equivalent form acceptable to Owner and (ii) primary and not contributing to any insurance available to Landlord and Landlord's insurance shall be in excess thereto. Tenant shall obtain a waiver of subrogation in favor of Landlord. Policy shall contain no exclusions or sub limits for claims related to assault and battery, firearms, abuse and molestation, human trafficking and animals. In no event shall the limits of such insurance be considered as limiting the liability of Tenant under this Lease.

(ii) Comprehensive automobile liability insurance covering Tenant against any losses arising out of liability for personal injuries or deaths of persons and property damage occurring in or about the Demised Premises in the amount of not less than One Million Dollars (\$1,000,000.00) combined single limit. Tenant shall obtain a waiver of subrogation in favor of Landlord.

(iii) Personal property insurance insuring all equipment, trade fixtures, inventory, fixtures, tenants improvements and betterments and personal property located on or in the Demised Premises for perils covered by the causes of loss-special form (all risk) and in addition, coverage for flood, wind, earthquake, terrorism and boiler and machinery (if applicable). Such insurance shall be written on a replacement cost basis in an amount equal to one hundred percent (100%) of the full replacement value of the aggregate of the foregoing.

(iv) Business interruption and extra expense insurance in such amounts to reimburse Tenant for direct or indirect loss attributable to all perils commonly insured against by prudent tenants or attributable to prevention of access to the Demised Premises or the Building as result of such perils.

(v) Workers' compensation insurance in accordance with statutory law and employers' liability insurance with a limit of not less than One Million Dollars (\$1,000,000.00) per accident, One Million Dollars (\$1,000,000.00) disease policy limit and One Million Dollars (\$1,000,000.00) disease limit for each employee. Tenant shall obtain a waiver of subrogation in favor of Landlord.

(vi) Umbrella liability insurance with a minimum limit of Five Million Dollars (\$5,000,000.00) in excess of the underlying commercial general liability, comprehensive automobile liability, and employer's liability policies. The umbrella policy shall name Landlord, ML Realty Partners LLC, "Mortgagee," and any other party reasonably designated by Landlord as additional insureds. The umbrella policy shall be primary and non-contributory with respect to the interests of the additional insureds. Tenant shall obtain a waiver of subrogation in favor of Landlord on this umbrella policy.

(vii) Intentionally Omitted.

(viii) Such other insurance as Landlord deems necessary and prudent or required by Landlord's beneficiaries or mortgagees of any deed of trust or mortgage encumbering the Demised Premises.

(b) The policies required to be maintained by Tenant shall be with companies rated A X or better in the most current issue of A.M. Best's Insurance Ratings Guide. Insurers shall be licensed to do business in the state in which the Demised Premises is located and domiciled in the USA. Any deductible amounts under any insurance policies required hereunder shall not exceed \$25,000.00. Certificates of insurance, which Landlord shall be permitted to rely on by the issuing insurance company and certified copies of the policies or binders of such insurance (if requested by Landlord) shall be delivered to Landlord prior to the Commencement Date and annually thereafter prior to each policies renewal to confirm continuous coverage. Each policy of insurance shall provide written notification to Landlord at least (i) thirty (30) days prior to any cancellation, modification, termination or lapse, or the effective date of any reduction in the amount of insurance coverage, and (ii) ten (10) days for non-payment of premiums.

(c) In the event Tenant shall fail to carry and maintain the insurance coverages required by this Lease or keep the same in full force and effect, Landlord may, but shall not be obligated to purchase the necessary insurance and pay the premium. Tenant shall reimburse Landlord, as Additional Rent, the amount so paid promptly upon demand. In addition, Landlord may recover from Tenant and Tenant agrees to pay, as Additional Rent, any and

all expenses (including attorneys' fees) and damages which Landlord may sustain by reason of the failure to Tenant to obtain and maintain such insurance.

(d) Landlord and Tenant hereby mutually waive any and every claim and their respective rights of recovery against each other and their respective officers, directors, managers, members, partners, agents and employees, that arises or may arise in its favor against the other party during the Term of this Lease for any and all theft, destruction, fire, loss of or loss of use of, or damage to, either party's property, or any inconvenience relating thereto, which is covered or is required by this Lease to be covered by policies of insurance (whether or not self-insured), EVEN IF SUCH LOSS WAS CAUSED, DIRECTLY OR INDIRECTLY, BY THE NEGLIGENCE OR FAULT OF THE OTHER PARTY, to the extent that such loss or damage is recoverable under said insurance policies (or would have been recoverable had the party maintained such policy required by this Lease). Inasmuch as these mutual waivers will preclude the assignment of any such claim by way of subrogation to an insurance company (or any other person), each party agrees to immediately give to each insurance company that has issued an insurance policy to such party written notice of the terms of such mutual waivers, and to obtain any special endorsements, if required by its insurer whereby the insurer waives its rights of subrogation against the other party without invalidating the insurance coverage by reason of such waivers. These mutual waivers are in addition to, and not in limitation or derogation of, any other waiver or release contained in this Lease with respect to any loss of, or damage to, property of the parties hereto. Landlord and Tenant each covenant and agree that no insurer shall hold any right of subrogation against the other with respect to any such damage or loss.

9. Utilities. During the Term, Tenant shall place all utilities in the name of Tenant and promptly pay as billed to Tenant all rents and charges for water and sewer services and all costs and charges for gas, steam, electricity, fuel, light, power, telephone, heat and any other utility or service used or consumed in or servicing the Demised Premises. Any utilities which are not separately metered shall be billed to Tenant by Landlord at Landlord's actual cost. In the event Tenant's use of any utility not separately metered is in excess of the average use by other tenants, Landlord shall have the right to install a meter for such utility, at Tenant's expense, and bill Tenant for Tenant's actual use. If Tenant fails to pay any utility bills or charges, Landlord may, at its option and upon reasonable notice to Tenant, pay the same and, in such event, the amount of such payment, together with interest thereon at the Interest Rate (as defined in Section 33) from the date of such payment by Landlord will be added to Tenant's next due payment as Additional Rent.

10. Maintenance and Repairs.

(a) Tenant shall, at its own cost and expense, maintain in good condition and repair, and replace as necessary, the Demised Premises, including but not limited to the heating, air conditioning and ventilation systems ("HVAC"), glass, windows and doors, all plumbing, water and sewage systems and lines, fire sprinklers and fire protection and detection systems, fixtures, interior walls, wall finishes, floors (including floor slabs), ceilings, columns, storefronts, plate glass, skylights, pipes, mains, water and sewer connections, truck docks and dock doors (including, without limitation, dock levelers, dock shelters, dock bumpers, dock plates, dock seals and dock lighting) entrance doors, door jams, all electrical facilities and equipment including, without limitation, lighting fixtures, lamps, fans and any exhaust equipment and systems, electrical motors, and all other appliances and equipment of every kind and nature located in, upon or about the Demised Premises. All such maintenance, repairs and replacements shall be of good quality, using new Building-standard materials and sufficient for the proper maintenance and operation of the Demised Premises. Tenant shall keep and maintain the Demised Premises safe, secure and clean, specifically including, but not by way of limitation, removal of waste and refuse matter. Tenant shall not permit anything to be done upon the Demised Premises (and shall perform all maintenance and repairs thereto so as not) to invalidate, in whole or in part, or prevent the procurement of any insurance policies which may, at any time, be required under the provisions of this Lease. Tenant shall not obstruct or permit the obstruction of any parking area, adjoining street or sidewalk. During the Term, Tenant shall maintain in full force and effect a service contract for the maintenance of the HVAC with an entity acceptable to Landlord. Such service contract shall conform to the requirements under the warranty, if any, on said systems, including, but not limited to, (i) adjust belt tension; (ii) lubricate all moving parts, as necessary; (iii) inspect and adjust all temperature and safety controls; (iv) check refrigeration system for leaks and operation; (v) check refrigeration system for moisture; (vi) inspect compressor oil level and crank case heaters; (vii) check head pressure, suction pressure and oil pressure; (viii) inspect air filters and replace when necessary; (ix) check space conditions; (x) check condensate drains and drain pans and clean, if necessary; (xi) inspect and adjust all valves; (xii) check and adjust dampers; (xiii) run machine through complete cycle; (xiv) replacement of filters as necessary; (xv) provide for at least quarterly inspections; and (xvi) cleaning of the applicable units, systems and equipment, together with such other adjustments and servicing as each such inspection discloses to be recommended or required. Tenant shall deliver to Landlord (1) a copy of said service contract prior to the Commencement Date, and (2) thereafter, a copy of a renewal or substitute service contract within thirty (30) days prior to the expiration of the existing service contract, and (3) upon Landlord's request, a copy of the service log reflecting all services performed under such service contract. Notwithstanding the foregoing but subject to the remaining terms of this Section, Tenant shall be permitted to provide and responsible for the maintenance, repair and replacement of the HVAC systems serving the Demised Premises using qualified HVAC technicians employed by Tenant through a division of Tenant that provides HVAC services (the "HVAC Technicians") pursuant to the terms of this Section. Tenant represents and warrants to Landlord that the HVAC Technicians are experienced, trained and certified in providing the HVAC services required in this Section. Tenant shall (i) promptly notify Landlord in writing if the HVAC Technicians cease to employed by Tenant and provide such HVAC services, and (ii) cause the HVAC Technicians to comply with terms and requirements of all warranties applicable to the HVAC systems and the roof in connection with providing the HVAC services under this Section. In the event that (1) Landlord determines in its reasonable judgment that the services provided by the HVAC Technicians are improper, inadequate or not in compliance with the requirements of this Section, or (2) the HVAC Technicians are no longer employed by Tenant or properly trained in providing HVAC services, then Tenant shall thereafter be required to maintain in full force and effect a service contract for the maintenance of HVAC systems with an entity acceptable to Landlord.

(b) Subject to the provisions of Sections 20 and 21, Landlord shall maintain, repair and replace the parking lot, sidewalks and appurtenances thereto and make or cause to be made all structural repairs to and replacements of the “Structural Components” (as hereinafter defined) of the Building. For purposes of this Lease the term “Structural Components” shall mean the exterior roof, foundation (beneath the floor slab) and structural frame of the Building and the structural soundness of all exterior walls (excluding windows, window frames, doors and door frames). All costs incurred by Landlord under this Section 10(b) shall be included in Operating Expenses, with the exception of the replacement of the roof of the Building, which shall be at Landlord’s sole cost and expense and not passed through to Tenant as Operating Expenses. Landlord’s obligation shall exclude the cost of any maintenance or repair required because of the act or negligence of Tenant or any of Tenant’s subsidiaries or affiliates or subtenant(s), or any of Tenant’s or such subsidiaries’ or affiliates’ or subtenant(s)’ agents, contractors, employees, licensees or invitees (collectively, “Tenant’s Affiliates”), the cost of which shall be the responsibility of Tenant. Landlord shall never have any obligation to repair, maintain or replace, pursuant to this subsection 10(b) or any other provision of this Lease, any Tenant Change (as defined in Section 19 hereof).

(c) Notwithstanding anything in this Section 10 to the contrary (subject to Section 10(b) above), provided that Tenant properly maintains the HVAC systems serving the Demised Premises including, without limitation, keeping in full force and effect the HVAC service contract with respect thereto in compliance with the requirements of Section 10(a) above, Tenant’s repair obligation with respect to any HVAC unit serving the office portion of the Demised Premises that is at least fifteen (15) years old as of the Commencement Date (each, an “Eligible HVAC Unit”) shall not exceed \$2,500.00 per Eligible HVAC Unit per occurrence (the “HVAC Repair Cap”). For the avoidance of doubt, any costs that Tenant incurs with respect to the HVAC service contract shall not be applicable to the HVAC Repair Cap. Landlord shall be responsible for and shall pay to Tenant within thirty (30) days after receipt of an invoice therefor all repair costs with respect to any Eligible HVAC Unit in excess of the HVAC Repair Cap. The determination whether any Eligible HVAC Unit requires repair(s), versus requiring a replacement, shall be made on a reasonable basis by a licensed HVAC contractor selected by Landlord. Tenant’s “allocable share” of the cost of the HVAC Replacement shall equal the product of: (i) the total cost thereof plus interest of 9% per annum over the useful life of the HVAC Unit; and (ii) a fraction, the numerator of which is the number of months from Landlord’s substantial completion of the HVAC Replacement through the end of the Term, including any extension, and the denominator of which is the useful life, expressed in months, of the HVAC unit, which Landlord and Tenant hereby acknowledge and agree shall be one-hundred eighty (180) months. In the event an Eligible HVAC Unit is replaced, the replaced unit shall not be an Eligible HVAC Unit and Tenant’s responsibility for the cost of repairs to such unit shall not be limited by the HVAC Repair Cap.

(d) Landlord shall not be liable to Tenant or to any other person for any damage occasioned by failure in any utility system or by the bursting or leaking of any vessel or pipe in or about the Demised Premises, or for any damage occasioned by water coming into the Demised Premises or arising from the acts or neglects of occupants of adjacent property or the public.

(e) Notwithstanding anything in Section 10(a) to the contrary (subject to the limitations on Landlord’s obligations as set forth in Section 10(b) above), in the event that Tenant discloses to Landlord in writing any material defect in any of the (i) mechanical and plumbing systems serving the Demised Premises during the initial ninety (90) days of the Term of this Lease or (ii) electrical systems serving the Demised Premises during the initial one hundred eighty (180) days of the Term of this Lease, and such material defect is confirmed by Landlord, Landlord shall correct such defect at Landlord’s sole cost and expense.

11. Indemnity. All of Tenant’s personal property in the Demised Premises shall be and remain at Tenant’s sole risk. Landlord, its affiliates, owners, partners, members, managers, officers, agents, employees and contractors (collectively, “Landlord Indemnified Parties”), shall not be liable for and Tenant hereby releases Landlord and the Landlord Indemnified Parties from any and all liability for theft thereof or any damage thereto. As to personal injury or property damage (including personal property of Tenant), Landlord and the Landlord Indemnified Parties shall not be liable for any injury to the person or property of Tenant or other persons in or about the Demised Premises, Tenant expressly agreeing to indemnify and save Landlord and the Landlord Indemnified Parties harmless in all such cases. Tenant further agrees to reimburse Landlord for any costs or expenses, including without limitation attorneys’ fees, which Landlord and the Landlord Indemnified Parties may actually incur in investigating, handling or litigating any such claim against Landlord and the Landlord Indemnified Parties by a third person. Tenant shall defend Landlord with counsel reasonably approved by Landlord. Tenant hereby indemnifies, defends, and holds Landlord and the Landlord Indemnified Parties harmless from and against any and all Losses (defined below) arising from or in connection with any or all of: (a) the conduct or management of the Demised Premises or any business therein, or any work or Tenant Change done, or any condition created by any or all of Tenant and Tenant’s Affiliates in or about the Demised Premises during the Term or during the period of time, if any, prior to the Commencement Date that Tenant is given access to the Demised Premises; (b) any act, omission or negligence of any or all of Tenant and Tenant’s Affiliates; (c) any accident, injury or damage occurring in, at or upon either or both of the Property and the Demised Premises caused by any or all of Tenant and Tenant’s Affiliates; (d) any breach by Tenant of any of its covenants, warranties and representations under this Lease; (e) any actions necessary to protect Landlord’s interest under this Lease in a bankruptcy proceeding or other proceeding under the Bankruptcy Code; (f) any violation or alleged violation by any or all of Tenant and Tenant’s Affiliates of any law or regulation, including, but not limited to, any actual or alleged violation of Texas Senate Bill 17 (as defined in Section 37), as amended from time to time, or any successor or related law prohibiting certain foreign ownership or leasehold interests in real property in Texas; (g) claims for work or labor performed or materials supplies furnished to or at the request of any or all of Tenant and Tenant’s Affiliates; and (h) claims arising from any breach or default on the part of Tenant in the performance of any covenant contained in this Lease (collectively, “Tenant’s Indemnified Matters”). In case any action or proceeding is brought against any or all of Landlord and the Landlord Indemnified Parties by reason of any of Tenant’s Indemnified Matters, Tenant, upon notice from Landlord, shall resist and defend such action or proceeding by counsel reasonably approved by Landlord. The term “Losses” shall mean all claims, demands, expenses, actions, judgments, damages (actual, but not consequential), penalties, fines, liabilities, losses of every kind and nature (including, without

limitation, property damage, diminution in value of Landlord's interest in the Property, damages for the loss or restriction on use of any space or amenity within the Demised Premises or the Property, damages arising from any adverse impact on marketing space in the Property, sums paid in settlement of claims and any costs and expenses associated with injury, illness or death to or of any person), suits, administrative proceedings, costs and fees, including, without limitation, attorneys' and consultants' fees and expenses, and the costs of cleanup, remediation, removal and restoration, that are in any way related to any matter covered by the foregoing indemnity. The provisions of this Section 11 shall survive the expiration or termination of this Lease.

12. Tenant's Fixtures and Personal Property. Tenant shall have the right to install in the Demised Premises trade fixtures and personal property required by Tenant or used by it in its business. Tenant may remove any or all such trade fixtures and personal property from time to time during the Term and shall remove all such trade fixtures and personal property upon the expiration or earlier termination of this Lease; provided, however, that Tenant may not remove any property from the Demised Premises from and after the occurrence of any Event of Default without the prior consent of Landlord. Tenant shall repair and restore any damage or injury to the Demised Premises (to the condition in which the Demised Premises existed prior to such installation) caused by the installation and/or removal of any such trade fixtures or personal property.

13. Signs. No sign, advertisement or notice shall be inscribed, painted, affixed, or displayed on the windows or exterior walls of the Demised Premises or on any public area of the Building or Property, except in such places, numbers, sizes, colors and styles as are approved in advance in writing by Landlord, such approval not to be unreasonably withheld, delayed or conditioned, subject always to the condition that all signs must conform to all applicable laws and ordinances affecting the Demised Premises and the Protective Covenants. Any and all permitted signs shall be installed, maintained and removed by Tenant at Tenant's sole cost and expense.

14. Intentionally Omitted.

15. Governmental Regulations. Tenant shall promptly comply at any time Tenant has access to the Demised Premises and throughout the Term, at Tenant's sole cost and expense, with all laws, ordinances, orders, rules, regulations or requirements of all federal, state and municipal governments and appropriate departments, commissions, boards and officers hereof (collectively, "Governmental Requirements") relating to (a) all or any part of the Demised Premises, or (b) the use or manner of use of the Demised Premises and the Common Areas. Tenant shall give prompt notice to Landlord of any written notice it receives of the alleged violation of any law or requirement of any governmental or administrative authority with respect to either or both of the Demised Premises and the use or occupation thereof.

16. Environmental Matters.

(a) For purposes of this Lease:

(i) "Contamination" as used herein means the presence of or release of Hazardous Substances (as hereinafter defined) into any environmental media from, upon, within, below, into or on any portion of the Demised Premises, the Building, or the Property so as to require remediation, cleanup or investigation under any applicable Environmental Law (as hereinafter defined).

(ii) "Environmental Laws" as used herein means all federal, state, and local laws, regulations, orders, permits, ordinances or other requirements which exist now or as may exist hereafter, concerning protection of human health, safety and the environment, all as may be amended from time to time.

(iii) "Hazardous Substances" as used herein means any hazardous or toxic substance, material, chemical, pollutant, contaminant or waste as those terms are defined by any applicable Environmental Laws (including, without limitation, the Comprehensive Environmental Response, Compensation and Liability Act, 42 U.S.C. 9601 et seq. and the Resource Conservation and Recovery Act, 42 U.S.C. 6901 et seq. ("RCRA") and any per-fluoroalkyl and poly-fluoroalkyl substances, solid wastes, polychlorinated biphenyls, urea formaldehyde, asbestos, radioactive materials, radon, explosives, petroleum products and oil.

(b) Tenant covenants that all its activities and the activities of Tenant's Affiliates in or on the Demised Premises, the Building or the Property during the Term will be conducted in compliance with Environmental Laws. Tenant warrants that it is currently in compliance with all applicable Environmental Laws affecting the business which Tenant intends to conduct at the Demised Premises and that there are no pending or threatened notices of deficiency, notices of violation, orders, or judicial or administrative actions involving alleged violations by Tenant of any Environmental Laws. Tenant, at Tenant's sole cost and expense, shall be responsible for obtaining all permits or licenses or approvals under Environmental Laws necessary for Tenant's operation of its business in or on the Demised Premises and shall make all notifications and registrations required by any applicable Environmental Laws to the extent applicable to the Demised Premises. Tenant, at Tenant's sole cost and expense, shall at all times comply with the terms and conditions of all such permits, licenses, approvals, notifications and registrations and with any other applicable Environmental Laws affecting in any way the Demised Premises. Tenant warrants that it has obtained all such permits, licenses or approvals and made all such notifications and registrations required by any applicable Environmental Laws necessary for Tenant's operation of its business on the Demised Premises. Tenant shall promptly provide Landlord or its designated agent with complete copies of all communications, permits or agreements with, from or issued by any governmental authority or agency (federal, state or local) or any private entity relating in any way to the presence, release, threat of release, or placement of Hazardous Substances on or in the Demised Premises or any portion of the Property, or the generation, transportation, storage, use, treatment, or disposal at, on, in or from the Demised Premises, of any Hazardous Substances.

(c) Tenant shall not cause or permit any Hazardous Substances to be brought upon, kept, stored or used in or about the Demised Premises, the Building, or the Property without the prior written consent of Landlord, which consent may be granted or withheld in the absolute discretion of Landlord; provided, however, that the consent of Landlord shall not be required for the use at the Demised Premises of cleaning supplies, toner for photocopying machines and other similar materials, in containers and quantities reasonably necessary for and consistent with normal and ordinary use by Tenant in the routine operation or maintenance of Tenant's office equipment or in the routine janitorial service, cleaning and maintenance of the Demised Premises.

(d) Tenant shall not cause or permit the release of any Hazardous Substances by Tenant or Tenant's Affiliates into any environmental media such as air, water or land, or into or on the Demised Premises, the Building or the Property in any manner that violates any Environmental Laws. If such release shall occur, Tenant shall (i) take all steps reasonably necessary to contain and control such release and any associated Contamination, (ii) clean up or otherwise remedy such release and any associated Contamination in accordance with the highest standards of remediation and to the satisfaction of Landlord and also to the extent required by, and take any and all other actions required under, applicable Environmental Laws and (iii) immediately notify and keep Landlord reasonably informed of such release and response.

(e) Regardless of any consents granted by Landlord pursuant to Section 16(c) allowing Hazardous Substances upon the Demised Premises, Tenant shall under no circumstances whatsoever cause or permit (i) any activity in, on or about the Demised Premises which would cause the Demised Premises to become subject to regulation as a hazardous waste treatment, storage or disposal facility under RCRA or the regulations promulgated thereunder; (ii) the discharge of Hazardous Substances into the storm sewer system serving the Building or the Property; or (iii) the installation of any underground storage tank or underground piping on or under the Demised Premises.

(f) Tenant shall and hereby does indemnify Landlord and the other Landlord Indemnified Parties and hold and defend Landlord (through counsel reasonably approved by Landlord) and the other Landlord Indemnified Parties harmless from and against any and all expense, loss, and liability suffered by Landlord or the other Landlord Indemnified Parties (except to the extent that such expenses, losses, and liabilities arising from Landlord's own negligence or willful misconduct), by reason of Tenant's or any Tenant Affiliates' storage, generation, release handling, treatment, transportation, disposal, or arrangement for transportation or disposal, of any Hazardous Substances (whether accidental, intentional, or negligent) or by reason of Tenant's or any Tenant Affiliate's breach of any of the provisions of this Section 16. Such expenses, losses and liabilities shall include, without limitation, (i) any and all expenses that Landlord may incur to comply with any Environmental Laws; (ii) any and all costs that Landlord may incur in studying or remedying any Contamination at or arising from the Demised Premises, the Building or the Property; (iii) any and all costs that Landlord may incur in studying, removing, disposing or otherwise addressing any Hazardous Substance; (iv) any and all fines, penalties or other sanctions assessed upon Landlord; and (v) any and all legal and professional fees and costs incurred by Landlord in connection with the foregoing. Notwithstanding the foregoing, Tenant shall have the right and obligation to undertake and perform all such studying, remedying, removing, disposing or otherwise addressing any Hazardous Substances which are the responsibility of Tenant under this subsection (f), and Landlord shall not perform such acts unless (x) Landlord is specifically required by Environmental Laws to perform such acts or (y) Tenant has failed or refused to perform such acts after having been afforded reasonable notice by Landlord and having had reasonable opportunity to perform such acts. The indemnity contained herein shall survive the expiration or earlier termination of this Lease.

(g) Landlord shall have the right, but not the obligation, to enter the Demised Premises at reasonable times throughout the Term, after prior written notice to Tenant, to audit and inspect the Demised Premises for Tenant's compliance with this Section 16. Upon written request by Landlord, Tenant shall provide Landlord with the results of reasonably appropriate tests of air, water or soil to demonstrate that Tenant complies with all applicable laws, rules or permits relating in any way to the generation, transport, storage, use, treatment, disposal or presence of Hazardous Substances on, at, in or from all or any portion of either or both of the Demised Premises and the Property.

(h) If Landlord has a good faith reason to believe that Tenant is in breach of Environmental Laws pursuant to this Lease, Landlord may perform, at Tenant's sole cost and expense, a Phase I environmental site assessment report concerning the Demised Premises, prepared by an environmental consulting firm chosen by Landlord and approved by Tenant, such approval not to be unreasonably withheld (and, if recommended by such firm, a Phase II report, and individually and collectively referred to as the "Environmental Report," indicating the presence or absence of Hazardous Substances caused or permitted by Tenant and the potential cost of any compliance, removal or remedial action in connection with any such Hazardous Substances on the Demised Premises. Tenant shall grant and hereby grants to Landlord and its agents access to the Demised Premises on at least forty eight (48) hours prior written notice to Tenant and specifically grants Landlord an irrevocable non-exclusive license to undertake such an assessment; and the cost of such assessment shall be immediately due and payable within thirty (30) days of receipt of an invoice therefore.

(i) Tenant will immediately advise Landlord in writing of any of the following: (i) any pending or, to Tenant's knowledge, any threatened environmental claim ("Environmental Claims") against Tenant relating to the Demised Premises or the Property; (ii) any condition or occurrence on the Demised Premises or the Property that results in noncompliance by Tenant with any applicable Environmental Law, (iii) any condition or occurrence on the Demised Premises or any property adjoining the Demised Premises that causes the Demised Premises to be subject to any restrictions on the ownership, occupancy, use or transferability of the Demised Premises under any Environmental Law; and (iv) the actual or anticipated taking of any removal or remedial action by Tenant in response to the actual or alleged presence of any Hazardous Substances on the Demised Premises or the Property. All such notices shall describe in reasonable detail the nature of the claim, investigation, condition, occurrence or removal or remedial action and Tenant's response thereto. In addition, Tenant will provide Landlord with copies of all communications regarding the Demised Premises with any governmental agency relating to Environmental Laws, all such communications with

any person relating to Environmental Claims, and such detailed reports of any such Environmental Claim as may reasonably be requested by Landlord.

(j) Landlord hereby represents and warrants to Tenant that as of the Lease Date, to Landlord's actual knowledge, and except as set forth in that certain that certain Asbestos-Containing Materials Operations and Maintenance Plan prepared for Landlord for the Property (the "O&M Plan"), relating to the environmental condition of the Demised Premises, a copy of which was provided to Tenant prior to the Lease Date, (i) the Demised Premises are free of Contamination, and (ii) there is no ongoing or anticipated remedial work necessary to bring the Demised Premises into compliance with Environmental Law. Except as provided in Section 19, Tenant shall have no obligations and no liabilities and shall bear no expense with respect to any Hazardous Substances or Contamination at the Demised Premises (1) existing prior to the Lease Date or (2) caused or permitted by Landlord or the Landlord Indemnified Parties, which Landlord shall address at Landlord's sole cost and expense (which shall be excluded from Operating Expenses).

17. Acceptance of Demised Premises.

(a) Except as set forth in this Section 17(a), LANDLORD IS LEASING THE DEMISED PREMISES TO TENANT "AS IS," WITHOUT ANY REPRESENTATIONS OR WARRANTIES, INCLUDING ANY EXPRESS OR IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS OR HABITABILITY, AND WITHOUT ANY OBLIGATION TO ALTER, REMODEL, IMPROVE, REPAIR, DECORATE OR CLEAN ANY PART OF THE DEMISED PREMISES OR COMMON AREAS. Notwithstanding the foregoing, Landlord (i) shall, at its sole cost and expense, deliver the Demised Premises to Tenant on the Commencement Date in broom-clean condition, with all mechanical, electrical and plumbing systems serving the Demised Premises in good working order, and (ii) shall, subject to the Landlord Contribution (as defined and provided in Section 17(b)), complete the following improvements (using Building-standard equipment, materials and finishes) to the Demised Premises: (1) installation of one (1) overside door that shall be 20-22' wide and 20-22' high (at such location as may be agreed to by Landlord and Tenant), and (2) installation of a men's restroom with at least two (2) urinals and one (1) stall to service the warehouse/production employees, each as such locations and pursuant to such plans and specifications as may be approved in writing by Landlord. The work identified in this Section 17(a)(ii) is collectively referred to as the "Landlord Work". Landlord will commence the Landlord Work promptly after the Lease Date and will diligently pursue to completion the Landlord Work, subject to Force Majeure (as defined in Section 18) events, delays caused by Tenant and delays beyond the reasonable control of Landlord. Landlord and Tenant acknowledge and agree that the Landlord Work will not be complete prior to the Commencement Date, and that Tenant: (i) shall be obligated to accept possession of the Demised Premises on the Lease Date notwithstanding that the Landlord Work has not been completed; (ii) acknowledges that Landlord's performance of the Landlord Work may impact Tenant's operations in the Demised Premises; and (iii) shall reasonably cooperate with Landlord (and any contractor of Landlord) in order to allow for the completion of the Landlord Work after the Commencement Date. Such entry by Landlord (and any contractor of Landlord) shall be governed by the provisions of Section 23 of this Lease. Except to the extent the same is the direct result of the negligence or intentional misconduct of Landlord or any of its contractors or employees, Landlord shall not be liable in any way for any inconvenience, annoyance, disturbance, injury, loss or damage which may occur to any of Tenant's property or installations in the Demised Premises while the Landlord Work is being completed and the obligations of Tenant under this Lease shall not thereby be affected; provided that Landlord shall use reasonable efforts not to interfere with Tenant's operations in the Demised Premises in performing the Landlord Work.

(b) Landlord shall contribute an amount up to \$225,000.00 (the "Landlord Contribution") toward the Cost of the Landlord Work (as defined below) incurred by Landlord in connection with the Landlord Work. For purposes hereof, the "Cost of the Landlord Work" shall mean and include all costs incurred by Landlord in connection with the design, permitting and construction of the Landlord Work, specifically including, but not limited to: (i) costs of all labor and materials; (ii) general conditions (including rubbish removal, hoisting, permit fees, temporary facilities, safety and protection, cleaning, tools, blueprints and reproductions, telephone, temporary power, field supervision and the like); (iii) premium costs for workers' compensation, public liability, casualty and other insurance; (iv) contractor's charges for overhead and fees; (v) architectural and engineering fees; (vi) all permits, approvals and other authorizations; and (vii) Landlord's construction oversight and management fee (not to exceed 4% of the Landlord Contribution). In the event the Cost of the Landlord Work is less than the Landlord Contribution then any unused portion of the Landlord Contribution (the "Remaining Landlord Contribution") shall be available to be used by Tenant for the cost of the Tenant Improvements, pursuant to the terms of Sections 17(c) and 17(d) below.

(c) Subject to the terms and conditions set forth in this Section 17 and all other applicable terms and provisions of this Lease, Tenant shall have the right to make the Tenant Improvements (as defined below) to the Demised Premises at its option and sole cost and expense after the Lease Date, subject to the Remaining Landlord Contribution. For purposes of this Section 17, the term "Tenant Improvements" shall mean (i) upgrading the power to and in the Demised Premises to provide for 400 amps at 480 volt to be utilized for Tenant's production needs and (ii) installation of a demising wall in the warehouse portion of the Demised Premises, subject to Landlord's prior written approval of the plans and specifications therefor, which shall not be unreasonably withheld, conditioned or delayed. All work done with respect to the Tenant Improvements shall be done only by licensed and bondable contractors experienced in such work and approved in writing by Landlord and shall comply with such insurance requirements as reasonably required by Landlord. Landlord acknowledges that Tenant shall be permitted to complete the above power upgrades to and in the Demised Premises, pursuant to the terms of this Section. Tenant shall provide to Landlord copies of all contract entered into by Tenant with respect to the completion of the Tenant Improvements. All of the Tenant Improvements shall comply with all applicable laws, statutes, codes, ordinances, rules and regulations of all governmental authorities, and shall be constructed, operated and maintained in a lien-free, good and workmanlike manner using first class grades of new materials. Tenant shall promptly pay to each of Tenant's contractors when due the cost of all work done by such Tenant's contractor and shall deliver to Landlord copies of invoices and reasonable evidence of payment to each such party, and final waivers of all liens for labor, service or

materials. Tenant shall defend, indemnify and hold harmless Landlord, its affiliates and subsidiaries, and all of the foregoing entities' managers, members, officers, directors, shareholders, employees, agents and representatives from all liabilities, costs, damages, fees and expenses (including without limitation reasonable attorneys' fees and costs) arising out of or related to the performance of the Tenant Improvements and Tenant's agents, contractors, suppliers or workmen in the Demised Premises. It is understood and agreed that the foregoing indemnity shall be in addition to the insurance and indemnity requirements set forth in this Lease and shall not be in discharge of or in substitution for the same or any other indemnity or insurance provision of this Lease. Tenant agrees that all terms of this Lease, shall apply to Tenant's completion of the Tenant Improvements.

(d) Provided Tenant has complied with this Section 17, and further provided that Tenant requests the Remaining Landlord Contribution, if any, for the completed Tenant Improvements no later than December 31, 2026 (the "Contribution Deadline Date"), Landlord shall contribute an amount not to exceed the amount of the Remaining Landlord Contribution towards the Cost of the Improvements (as defined below) incurred by Tenant in connection with the Tenant Improvements. The Remaining Landlord Contribution shall first be used for the cost of the power upgrades and if any portion of the Remaining Landlord Contribution is unused after completion of the power upgrades then any remaining amounts may be used for the cost of the installation of the demising wall as provided in this Section 17. Landlord shall disburse the Remaining Landlord Contribution to Tenant within thirty (30) days after the submission by Tenant to Landlord of (i) contractor's affidavits accompanied by full and final waivers of liens of all contractors, subcontractors and suppliers performing all or any part of the Tenant Improvements; (ii) copies of invoices and reasonable evidence of payment covering all labor and materials expended and used in connection with such work; and (iii) copies of all permits which are required to evidence proper completion of such work, if applicable. Further, and notwithstanding anything to the contrary hereinabove, no portion of the Remaining Landlord Contribution shall be due and payable, and Landlord shall have no obligation to pay any portion thereof so long as Tenant fails to timely discharge or bond over any mechanic's lien attributable to any of the Tenant Improvements, or if there is an uncured Event of Default. Tenant shall have sole responsibility for the payment of the Cost of the Improvements in excess of the Remaining Landlord Contribution. If the Cost of the Improvements is less than the Remaining Landlord Contribution the excess shall be retained by Landlord and forfeited by Tenant. If Tenant fails to timely request the Remaining Landlord Contribution by the Contribution Deadline Date, any unused portion of the Remaining Landlord Contribution shall be retained by Landlord and forfeited by Tenant. For purposes of this Section 17, the "Cost of the Improvements" shall include all costs incurred by Tenant in connection with the design, permitting and construction of the Tenant Improvements, specifically, but not limited to (i) costs of all labor and materials; (ii) general conditions (including rubbish removal, hoisting, permit fees, temporary facilities, safety and protection, cleaning, tools, blueprints and reproductions, telephone, temporary power, field supervision and the like); (iii) premium costs for workers' compensation, public liability, casualty and other insurance; (iv) contractor's charges for overhead and fees; (v) all permits, approvals and other authorizations; and (vi) Landlord's construction oversight and management fee (not to exceed 4% of the Remaining Landlord Contribution).

(e) Any improvements which Tenant proposes to make to the Demised Premises shall be deemed a "Tenant Change" (as defined in Section 19) and shall be made in strict accordance with Section 19. Upon completion of such work, Tenant shall furnish Landlord with final waivers of liens and contractors' affidavits, in such form as may be required by Landlord, Landlord's title insurance company and/or Mortgagee, from all parties performing labor or supplying materials or services in connection with the work showing that all such parties have been compensated in full and waiving all liens in connection with the Demised Premises and Building. Tenant shall submit to Landlord a detailed breakdown of Tenant's total construction costs, together with such evidence of payment as is reasonably satisfactory to Landlord.

18. Force Majeure. Landlord shall not be in default under this Lease to the extent Landlord is unable to perform any of its obligations on account of any strike or labor problem, energy shortage, governmental withholding of permits for work to be performed by Landlord for reasons outside of Landlord's control, governmental pre-emption or prescription, national emergency, or any other cause of any kind beyond the reasonable control of Landlord ("Force Majeure").

19. Tenant Alterations and Additions. Tenant shall not make or permit to be made any alterations, improvements, or additions to the Demised Premises (a "Tenant Change"), without first obtaining on each occasion Landlord's prior written consent. As part of its approval process, Landlord may require that Tenant submit plans and specifications to Landlord, for Landlord's approval and to deliver to Landlord "as built" plans and specifications (in CAD format if Landlord so requests) following the substantial completion thereof. Notwithstanding any other provision of this Lease to the contrary, the term Tenant Change shall include any changes made to the Demised Premises by Landlord or Tenant pursuant to the Tenant Improvement Agreement attached hereto as Exhibit "C" and forming a part hereof. Tenant shall be required to remove all Tenant Changes to the Demised Premises at the end of the Term unless Landlord provides written notice to Tenant, at least thirty (30) calendar days prior to the end of the Term, that such Tenant Change must be left in the Demised Premises. Accordingly, Tenant shall, at its sole cost and expense and upon the expiration or earlier termination of this Lease, remove the same and restore the Demised Premises to its condition prior to such Tenant Change unless notified to the contrary by Landlord as provided above. All Tenant Changes shall be performed in accordance with all legal requirements applicable thereto and in a good and workmanlike manner with first-class materials. Tenant shall maintain insurance reasonably satisfactory to Landlord during the construction of all Tenant Changes and shall provide Landlord with evidence thereof satisfactory to Landlord prior to the commencement of construction. No Tenant Change shall be structural in nature or impair the structural strength of the Building or reduce its value. Tenant shall pay the full cost of any Tenant Change and shall give Landlord such reasonable security as may be requested by Landlord to insure payment of such cost. With respect to any Tenant Change, Landlord shall have no duty or obligation to make any replacement or repair thereto, whether pursuant to Section 10 of this Lease or as required to comply with any law or otherwise, and whether interior or exterior, structural or nonstructural, ordinary or extraordinary. Tenant will notify Landlord in writing at any time prior to impacting any material that, on the basis of the O&M Plan given to Tenant or on the basis of Tenant's observation,

is known or suspected to contain asbestos. If impacting any such material, Tenant shall comply, at its sole cost and expense, with the O&M Plan and any supplemental written directions reasonably provided by Landlord in that regard.

20. Fire and Other Casualty.

(a) If the Demised Premises are damaged or destroyed by fire or other casualty, Landlord shall, subject to the limitations in subsection (b) of this Section 20, promptly and diligently proceed to repair, rebuild or replace the Demised Premises, so as to restore the Demised Premises to the condition in which the Demised Premises existed immediately prior to such damage or destruction. If Landlord carries on any restoration or repair at the Demised Premises pursuant to this Section 20 and Tenant continues to occupy any other portion of the Demised Premises, Landlord shall take all such steps as may be reasonable and practicable to prevent interference with Tenant's use and enjoyment of the portion of the Demised Premises which Tenant continues to occupy. Landlord shall perform its obligations under this Section 20 in a manner which will achieve restoration of any damage as soon as practicable, giving due regard to the nature and scope of the damage, subject to the occurrence of Force Majeure.

(b) Any provision of this Section 20 to the contrary notwithstanding, if either (i) all or any portion of the Demised Premises is damaged by fire or other casualty and the time period reasonably determined by Landlord to be required for the actual restoration or repair of the Demised Premises will exceed two hundred seventy (270) days from the date the casualty occurs or (ii) the Demised Premises is damaged by fire or other casualty within twelve (12) months preceding the end of the Term (which includes any renewal of the Term then properly exercised by Tenant) to an extent exceeding twenty-five percent (25%) of the then current value of the Demised Premises, then Landlord shall have the right, to be exercised by giving written notice to Tenant (which notice shall set forth with specificity the basis for giving the notice) within thirty (30) days after the occurrence of the casualty, to terminate this Lease. Termination shall be effective on a date specified in the written notice, which date shall be not less than thirty (30) nor more than sixty (60) days after the date the notice is given. Upon such termination, the term of this Lease shall end as if the date of termination were the date originally specified for expiration of the Term.

(c) If a casualty prevents Tenant from fully occupying the Demised Premises, Base Rent shall abate, for so long as such full occupancy is prevented, in proportion to the amount of the Demised Premises not usable by Tenant as a result of the casualty; provided that if the casualty occurred as a result of the act or negligence of Tenant or any of Tenant's Affiliates, there shall be no such abatement unless (and only to the extent) that the loss of rent is actually covered by insurance carried by Landlord pursuant to Section 8.

21. Condemnation.

(a) If all of the Demised Premises is taken or condemned for a public or quasi-public use ("Taking"), or if a Material Portion of the Demised Premises (as hereinafter defined) is acquired in a Taking and the remaining portion thereof is not usable by Tenant in the reasonable opinion of Landlord, this Lease shall terminate as of the earlier of the date title to the condemned real estate vests in the condemnor or the date on which Tenant is deprived of possession of the Demised Premises. In such event, the Base Rent herein reserved and all Additional Rent and other sums payable hereunder shall be apportioned and paid in full by Tenant to Landlord to that date, all Base Rent, Additional Rent and other sums payable hereunder prepaid for periods beyond that date shall forthwith be repaid by Landlord to Tenant, and neither party shall thereafter have any liability hereunder, except that any obligation or liability of either party, actual or contingent, under this Lease which has accrued on or prior to such termination date shall survive. A Taking shall have acquired a "Material Portion of the Demised Premises" if the Taking:

- (i) affects more than 10% of the area of the Demised Premises; or
- (ii) materially and adversely affects Tenant's access to the Land or the Building as reasonably determined by Landlord.

(b) If less than a Material Portion of the Demised Premises is affected by a Taking, Landlord, to the extent of the award it receives, shall restore the Demised Premises to a condition and to a size as nearly comparable as reasonably possible to the condition and size thereof immediately prior to the Taking, and there shall be an equitable adjustment to the Base Rent based on the actual loss of use of the Demised Premises suffered by Tenant as a result of the Taking.

(c) Landlord shall be entitled to receive the entire award in any proceeding with respect to any Taking provided for in this Section 21, without deduction therefrom for any estate vested in Tenant by this Lease, and Tenant shall receive no part of such award. Nothing herein contained shall be deemed to prohibit Tenant from making a separate claim, against the condemnor, to the extent permitted by law, for the value of Tenant's moveable trade fixtures, machinery and moving expenses, provided that the making of such claim shall not and does not adversely affect or diminish Landlord's award.

22. Tenant's Default.

(a) The occurrence of any one or more of the following events shall constitute an "Event of Default" of Tenant under this Lease:

- (i) if Tenant fails to pay Base Rent or any Additional Rent hereunder as and when such rent becomes due and such failure continues for five (5) calendar days after Landlord gives Tenant written notice of such failure, provided that Landlord shall not be obligated to delivery such notice more than one (1) time in any calendar year;

(ii) if Tenant permits to be done anything which creates a lien upon the Demised Premises and fails to discharge, bond such lien or post security with Landlord acceptable to Landlord within thirty (30) days after receipt by Tenant of written notice thereof;

(iii) if Tenant fails to maintain in force all policies of insurance required by this Lease and such failure shall continue for more than ten (10) days after Landlord gives Tenant notice of such failure;

(iv) the Demised Premises becomes vacant, deserted or wholly or a substantial portion thereof be abandoned for more than ten (10) consecutive days or if Tenant fails to take possession of the Demised Premises on the Commencement Date or promptly thereafter;

(v) if any petition is filed by or against Tenant under any present or future section or chapter of the Bankruptcy Code, or under any similar law or statute of the United States or any state thereof (which, in the case of an involuntary proceeding, is not permanently discharged, dismissed, stayed, or vacated, as the case may be, within sixty (60) days of commencement), or if any order for relief shall be entered against Tenant in any such proceedings;

(vi) if Tenant becomes insolvent or makes a transfer in fraud of creditors or makes an assignment for the benefit of creditors;

(vii) if a receiver, custodian, or trustee is appointed for the Demised Premises or for all or substantially all of the assets of Tenant, which appointment is not vacated within sixty (60) days following the date of such appointment; or

(viii) if Tenant fails to perform or observe any other term of this Lease or any representation or warranty of Tenant made herein does not remain true and correct and such failure shall continue for more than ten (10) days after Landlord gives Tenant written notice of such failure.

(f) Upon the occurrence of any Event of Default Landlord may, at Landlord's option, without any demand or notice whatsoever (except as expressly required in this Section 22):

(i) Terminate this Lease by giving Tenant notice of termination, in which event this Lease shall expire and terminate on the date specified in such notice of termination and all rights of Tenant under this Lease and in and to the Demised Premises shall terminate. Tenant shall remain liable for all obligations under this Lease arising up to the date of such termination, and Tenant shall surrender the Demised Premises to Landlord on the date specified in such notice.

(ii) Terminate this Lease as provided in Section 22(b)(i) hereof and recover from Tenant all damages Landlord may incur by reason of Tenant's default, including, without limitation, an amount which, at the date of such termination, is calculated as follows: (1) the value of the excess, if any, of (A) the Base Rent, Additional Rent and all other sums which would have been payable hereunder by Tenant for the period commencing with the day following the date of such termination and ending with the Expiration Date had this Lease not been terminated (the "Remaining Term"), over (B) the aggregate reasonable rental value of the Demised Premises for the Remaining Term (which excess, if any, shall be discounted to present value at the "Treasury Yield" as defined below for the Remaining Term); plus (2) the costs of recovering possession of the Demised Premises and all other expenses incurred by Landlord due to Tenant's default, including, without limitation, attorneys' fees; plus (3) the unpaid Base Rent and Additional Rent earned as of the date of termination plus any interest and late fees due hereunder, plus other sums of money and damages owing on the date of termination by Tenant to Landlord under this Lease or in connection with the Demised Premises. The amount calculated above shall be deemed immediately due and payable. The payment of the amount calculated in subsection (ii) (1) shall not be deemed a penalty but shall merely constitute payment of liquidated damages, it being understood, acknowledged and agreed by Landlord and Tenant that they have included provisions for payment of liquidated damages in this Lease because if this Lease is not fully performed as provided herein, the liquidated damages to which Landlord is entitled hereunder is a reasonable forecast for just compensation for the harm that would be caused by Tenant's failure to timely perform its obligations under this Lease and the harm that would be caused by such failure is one that is incapable of accurate estimation. "Treasury Yield" shall mean the rate of return in percent per annum of Treasury Constant Maturities for the length of time specified as published in document H.15 (519) (presently published by the Board of Governors of the U.S. Federal Reserve System titled "Federal Reserve Statistical Release") for the calendar week immediately preceding the calendar week in which the termination occurs. If the rate of return of Treasury Constant Maturities for the calendar week in question is not published on or before the business day preceding the date of the Treasury Yield in question is to become effective, then the Treasury Yield shall be based upon the rate of return of Treasury Constant Maturities for the length of time specified for the most recent calendar week for which such publication has occurred. If no rate of return for Treasury Constant Maturities is published for the specific length of time specified, the Treasury Yield for such length of time shall be the weighted average of the rates of return of Treasury Constant Maturities most nearly corresponding to the length of the applicable period specified. If the publishing of the rate of return of Treasury Constant Maturities is ever discontinued, then the Treasury Yield shall be based upon the index which is published by the Board of Governors of the U.S. Federal Reserve System in replacement thereof or, if no such replacement index is published, the index which, in Landlord's reasonable determination, most nearly corresponds to the rate of return of Treasury Constant Maturities. In determining the aggregate reasonable rental value pursuant to subparagraph (ii)(1)(B) above, the parties hereby agree that, at the time Landlord seeks to enforce this remedy, all relevant factors should be considered, including, but not limited to, (a) the length of time remaining in the Term, (b) the then current market conditions in the general area in which the Building is located, (c) the likelihood of reletting the Demised Premises for a period

of time equal to the remainder of the Term, (d) the net effective rental rates then being obtained by landlords for similar type space of similar size in similar type buildings in the general area in which the Building is located, (e) the vacancy levels in the general area in which the Building is located, (f) current levels of new construction that will be completed during the remainder of the Term and how this construction will likely affect vacancy rates and rental rates and (g) inflation; or

(iii) Intentionally Omitted.

(iv) Without terminating this Lease, Landlord may, without the necessity of notice to Tenant, terminate Tenant's right of possession of the Demised Premises and thereupon enter into and upon and take possession of the Demised Premises or any part thereof. Any property then remaining in the Demised Premises may be removed and stored in a warehouse or elsewhere at the cost of, and for the account of Tenant without Landlord being deemed guilty of trespass or becoming liable for any loss or damage which may be occasioned thereby. Thereafter, Landlord may, but shall not be obligated to, lease to a third party the Demised Premises or any portion thereof as the agent of Tenant upon such terms and conditions as Landlord in its sole discretion may determine (including a term different from the Term, rental concessions, and alterations to, and improvement of, the Demised Premises); however, Landlord shall not be obligated to expend funds in connection with reletting the Demised Premises, nor to relet the Demised Premises before leasing other portions of the Building, as applicable, and Landlord shall not be obligated to accept any prospective tenant proposed by Tenant unless such proposed tenant meets all of Landlord's leasing criteria. Landlord shall not be liable for, nor shall Tenant's obligations hereunder be diminished because of Landlord's failure to relet the Demised Premises or to collect rent due for such reletting. Tenant shall not be entitled to the excess of any consideration obtained by reletting over the Rent due hereunder. Reentry by Landlord in the Demised Premises shall not affect Tenant's obligations hereunder for the unexpired Term; rather, Landlord may, from time to time, bring an action against Tenant to collect amounts due by Tenant, without the necessity of Landlord's waiting until the expiration of the Term. The remainder of any rentals received by Landlord from such reletting, after the payment of any indebtedness due hereunder from Tenant to Landlord, and the payment of any costs and expenses of such reletting (including, without limitation, leasing commissions and costs of preparing the Demised Premises for reletting), shall be held by Landlord to the extent of and for application in payment of future rent owed by Tenant, if any, as the same may become due and payable hereunder, plus the costs and expenses relating to reletting as described in the immediately preceding sentence. If such rentals received from such reletting shall at any time or from time to time be less than sufficient to pay to Landlord the entire sums then due from Tenant hereunder, Tenant shall pay any such deficiency to Landlord. Unless Landlord delivers written notice to Tenant expressly stating that it has elected to terminate this Lease, all actions taken by Landlord to dispossess or exclude Tenant from the Demised Premises shall be deemed to be taken under this paragraph. Notwithstanding any such reletting without termination, Landlord may at any time thereafter elect to terminate this Lease for any such previous default provided same has not been cured; or

(v) Without liability to Tenant or any other party and without constituting a constructive or actual eviction, suspend or discontinue furnishing or rendering to Tenant any property, material, labor, utilities or other service, wherever Landlord is obligated to furnish or render the same so long as Tenant is in default under this Lease; or

(vi) With or without terminating this Lease, allow the Demised Premises to remain unoccupied and collect rent from Tenant as it comes due; or

(vii) Without terminating this Lease, and with or without notice to Tenant, enter into and upon the Demised Premises and, without being liable for prosecution or any claim for damages therefore, maintain the Demised Premises and repair or replace any damage thereto or do anything or make any payment for which Tenant is responsible hereunder. Tenant shall reimburse Landlord immediately upon demand for any expenses which Landlord incurs in thus effecting Tenant's compliance under this Lease and Landlord shall not be liable to Tenant for any damages with respect thereto; or

(viii) Additionally, with or without notice, and to the extent permitted by Governmental Requirements, Tenant agrees that following an Event of Default under this Lease, Landlord may enter the Demised Premises under this provision by use of a master key, a duplicate key or any other means to the extent permitted by law, without breaching the peace, and change, alter or modify the door locks, elevators or other security devices of all entry doors to the Demised Premises thereby permanently excluding Tenant from the Demised Premises and Landlord shall not be (a) liable to Tenant for damages in connection therewith, or (b) required to provide a new key or right of access to Tenant until such time as Tenant fully cures the Event of Default at issue. Tenant agrees that this provision of this Lease will override and control any conflicting provision of Sections 93.002 and 93.003 of the Texas Property Code, as well as any successor statute governing the right of a landlord to change the door locks of a commercial tenant; or

(ix) In addition to any right of setoff or recoupment provided in this Lease or by law or in equity, Landlord shall be entitled to set off or recoup against any sums that are payable by Landlord to Tenant against any amounts for which Landlord determines in good faith Tenant is liable to Landlord under this Lease; or

(x) Pursue such other remedies as are available at law or equity.

(c) If this Lease shall terminate as a result of or while there exists an Event of Default hereunder, any funds of Tenant held by Landlord may be applied by Landlord to any damages payable by Tenant (whether provided for herein or by law) as a result of such termination or default.

(d) Neither the commencement of any action or proceeding, nor the settlement thereof, nor entry of judgment thereon shall bar Landlord from bringing subsequent actions or proceedings from time to time, nor shall the failure to include in any action or proceeding any sum or sums then due be a bar to the maintenance of any subsequent actions or proceedings for the recovery of such sum or sums so omitted.

(e) No agreement to accept a surrender of the Demised Premises and no act or omission by Landlord or Landlord's agents during the Term shall constitute an acceptance or surrender of the Demised Premises unless made in writing and signed by Landlord. No re-entry or taking possession of the Demised Premises by Landlord shall constitute an election by Landlord to terminate this Lease unless a written notice of such intention is given to Tenant. No provision of this Lease shall be deemed to have been waived by either party unless such waiver is in writing and signed by the party making such waiver. Landlord's acceptance of Base Rent or Additional Rent in full or in part following an Event of Default hereunder shall not be construed as a waiver of such Landlord's rights regarding such Event of Default. No waiver by Landlord of any violation or breach of any of the terms contained herein shall waive Landlord's rights regarding any future violation of such term. Landlord's acceptance of any partial payment of Rent shall not waive Landlord's rights with regard to the remaining portion of the Rent that is due, regardless of any endorsement or other statement on any instrument delivered in payment of Rent or any writing delivered in connection therewith; accordingly, Landlord's acceptance of a partial payment of Rent shall not constitute an accord and satisfaction of the full amount of the Rent that is due. No custom or practice which may grow up between the parties in connection with the terms of this Lease shall be construed to waive or lessen either party's right to insist upon strict performance of the terms of this Lease, without a written notice thereof to the other party.

(f) If an Event of Default shall occur, Tenant shall pay to Landlord, on demand, all expenses incurred by Landlord as a result thereof, including attorneys' fees, court costs and expenses actually incurred. Landlord may, at the option of Landlord, cure any Event of Default and the actual cost of such cure shall be payable by Tenant to Landlord within thirty (30) calendar days after written demand and shall bear interest at the Interest Rate until repayment in full by Tenant occurs; provided, however, that if a failure by Tenant to perform or observe any term of this Lease gives rise to circumstances or conditions which constitute an emergency threatening human health or safety, Landlord shall, after making a reasonable effort to notify Tenant, be entitled to take immediately curative action to the extent necessary to eliminate the emergency. Any cost so incurred by Landlord shall be reasonably incurred and must not exceed the scope of the Event of Default in question; and if such costs are chargeable as a result of labor or materials provided directly by Landlord, rather than by unrelated third parties, the cost shall not exceed the amount which would have been charged by a qualified third party unrelated to Landlord. Such costs must be reasonably documented and copies of such documentation must be delivered to Tenant with the written demand for reimbursement.

(g) For purposes of determining any recovery of rent or damages by Landlord that depends upon what Landlord could collect by using reasonable efforts to relet the Demised Premises, it is understood and agreed that:

(1) Landlord may elect to lease other comparable, available space in the Building, if any, before reletting the Demised Premises;

(2) Landlord may decline to incur out-of-pocket costs to relet the Demised Premises, other than customary leasing commissions and legal fees for the negotiation of a lease with a new tenant;

(3) Landlord may decline to relet the Demised Premises at rental rates below then prevailing market rental rates, because of the negative impact lower rental rates would have on the value of the Building and because of the uncertainty of actually receiving from Tenant the greater damages that Landlord would suffer from and after reletting at the lower rates;

(4) Before reletting the Demised Premises to a prospective tenant, Landlord may require the prospective tenant to demonstrate the same financial wherewithal that Landlord would require as a condition to leasing other space in the Building to the prospective tenant;

(5) Identifying a prospective tenant to relet the Demised Premises, negotiating a new lease with such tenant and making the Demised Premises ready for such tenant will take time, depending upon market conditions when the Demised Premises first become available for reletting, and during such time Landlord cannot be expected to collect any revenue from reletting; and

(6) Listing the Demised Premises with a broker in a manner consistent with parts (1) through (5) above constitutes reasonable efforts on the part of Landlord to relet the Demised Premises.

23. Landlord's Right of Entry. Tenant agrees to permit Landlord and the authorized representatives of Landlord and of Mortgagee (as defined in Section 24) to enter upon the Demised Premises at all reasonable times for the purposes of inspecting the Demised Premises, ascertaining Tenant's compliance with this Lease, curing any Event of Default and making any repairs required to be performed by Landlord; provided that, except in the case of an emergency, Landlord shall give Tenant not less than 48 hours' prior written notice of Landlord's intended entry upon the Demised Premises. Nothing herein shall imply any duty upon the part of Landlord to do any work required of Tenant hereunder, and the performance thereof by Landlord shall not constitute a waiver of Tenant's default in failing to perform it. Landlord shall not be liable for inconvenience, annoyance, disturbance or other damage to Tenant by reason of making such repairs or the performance of such work in the Demised Premises or on account of bringing

materials, supplies and equipment into or through the Demised Premises during the course thereof and the obligations of Tenant under this Lease shall not thereby be affected; provided, however, that Landlord shall use reasonable efforts not to interfere with Tenant's operations in the Demised Premises in making such repairs or performing such work. Tenant also agrees that Landlord and the authorized representatives of Landlord and of Mortgagee shall have the right to enter upon the Demised Premises at all reasonable times, upon not less than 48 hours' prior written notice for the purposes to (a) show the Demised Premises to prospective purchasers or lenders, and (b) at any time during the last twelve (12) months of the Term (or earlier if Tenant has notified Landlord in writing that it does not desire to renew the Term) or at any time after the occurrence of an Event of Default, to enter the Demised Premises a mutually agreeable time to show the Demised Premises to prospective tenants and to place signs at the Demised Premises including that the Demised Premises is available for rent.

24. Mortgagee's Rights.

(a) For purposes of this Lease:

(i) "Mortgagee" as used herein means the holder of a Mortgage;

(ii) "Mortgage" as used herein means any or all mortgages, deeds to secure debt, deeds of trust or other instruments in the nature thereof which may now or hereafter affect or encumber Landlord's title to the Demised Premises, and any amendments, modifications, extensions or renewals thereof.

(b) This Lease and all rights of Tenant hereunder are and shall be subject and subordinate to the lien and security title of any Mortgage. Tenant recognizes and acknowledges the right of Mortgagee to foreclose or exercise the power of sale against the Demised Premises under any Mortgage.

(c) Within fifteen (15) days after Landlord's request, Tenant shall, in confirmation of the subordination set forth in Section 24(b) and notwithstanding the fact that such subordination is self-operative, and no further instrument or subordination shall be necessary, upon demand, at any time or times, execute acknowledge, and deliver to Landlord or to Mortgagee any and all instruments requested by either of them to evidence such subordination.

(d) At any time during the Term, Mortgagee may, by written notice to Tenant, make this Lease superior to the lien of its Mortgage. If requested by Mortgagee, Tenant shall, upon demand, at any time or times, execute, acknowledge and deliver to Mortgagee, any and all instruments that may be necessary to make this Lease superior to the lien of any Mortgage.

(e) If Mortgagee (or Mortgagee's nominee, or other purchaser at foreclosure) shall hereafter succeed to the rights of Landlord under this Lease, whether through possession or foreclosure action or delivery of a new lease, Tenant shall, if requested by such successor, attorn to and recognize such successor as Tenant's landlord under this Lease without change in the terms and provisions of this Lease and shall promptly execute and deliver any instrument that may be necessary to evidence such attornment, provided that such successor shall not be bound by (i) any payment of Base Rent or Additional Rent for more than one month in advance, except prepayments in the nature of security for the performance by Tenant of its obligations under this Lease, and then only if such prepayments have been deposited with and are under the control of such successor, (ii) any provision of any amendment to this Lease to which Mortgagee has not consented, (iii) the defaults of any prior landlord under this Lease, or (iv) any offset rights arising out of the defaults of any prior landlord under this Lease. Upon such attornment, this Lease shall continue in full force and effect as a direct lease between each successor landlord and Tenant, subject to all of the terms, covenants and conditions of this Lease.

25. Financial Statements. Tenant agrees to timely provide financial information as requested by Landlord, including, but not limited to, annual financial statements audited by independent certified public accountants within ninety (90) days after the end of each fiscal year and quarterly financial statements within sixty (60) days after the end of each fiscal quarter and any other financial information reasonably requested by Landlord (collectively, "Financial Information"). Tenant agrees that Landlord may deliver the Financial Information to any lender, prospective lender or prospective purchaser of the Demised Premises. Tenant hereby further agrees that the Financial Information submitted by it to Landlord, whenever furnished to Landlord and whether or not requested by Landlord, are material inducements to the execution by Landlord of this Lease. Tenant represents and warrants that such Financial Information is, and all Financial Information, whether furnished to Landlord and whether or not requested by Landlord, are true, correct and complete in all material respects and fairly present the financial condition of Tenant for the respective periods covered thereby, and that since the date thereof there has been no material adverse change in such financial condition or operations of the applicable party. Tenant hereby authorizes Landlord to make credit inquiries with Tenant's bank(s) and trade references from time to time during the Term, and Tenant agrees to provide Landlord with current references upon Landlord's request and to authorize such references to release credit information to Landlord.

26. Landlord's Costs and Expenses of Litigation. Tenant agrees to pay, and to indemnify and defend Landlord against (through counsel approved by Landlord), all costs and expenses (including attorneys' fees) incurred by or imposed upon Landlord by or in connection with any litigation or proceedings to which Landlord becomes or is made a party without fault on its part, whether commenced by or against Tenant, or any other person or entity or that may be incurred by Landlord in enforcing or by virtue of the breach by Tenant or any Tenant Affiliate of any of the covenants and agreements of this Lease with or without the institution of any action or proceeding relating to the Demised Premises or this Lease, or in obtaining possession of the Demised Premises after an Event of Default hereunder or upon expiration or earlier termination of this Lease. The foregoing notwithstanding, Tenant's responsibility under this Section 26 to pay Landlord's costs and expenses (including attorneys' fees) shall not extend

to such costs and expenses incurred in defending an action brought by Tenant to enforce the terms of this Lease in which there is a court determination that Landlord failed to perform its obligations under this Lease. Tenant shall reimburse Landlord for all attorneys' fees incurred by Landlord in connection with Landlord's review of any consent or waiver requested by Tenant. The provisions of this Section 26 shall survive the expiration or earlier termination of this Lease.

27. Estoppel Certificate. Tenant agrees that on the Commencement Date and at any time and from time to time thereafter, Tenant will execute, acknowledge and deliver to Landlord, Landlord's mortgagee, purchasers, or any other third party designated by Landlord, within ten (10) days from request by Landlord, a statement in writing in the form of Exhibit "E" attached hereto and by this reference incorporated herein, with such modifications thereto as may be necessary to render the statements therein factually accurate, and subject to such modifications thereto as Landlord may require. Tenant further agrees to certify to any prospective purchaser or mortgagee any other reasonable information specifically requested by such prospective purchaser or mortgagee. If Landlord does not receive the estoppel certificate as required under this Section 27 within the prescribed time, and Tenant fails to provide such estoppel certificate to Landlord with five (5) days after a second written request from Landlord, Tenant's failure to timely deliver such estoppel certificate shall constitute an Event of Default.

28. Landlord Liability. No owner of the Demised Premises, whether or not named herein, shall have liability hereunder after it ceases to hold title to the Demised Premises. No officer, director, shareholder, manager, member, partner or principal of Landlord, whether disclosed or undisclosed, nor any employee or agent of such parties, shall be under any personal liability with respect to any of the provisions of this Lease.

29. Notices. Any notice required or permitted to be given or served by either party to this Lease shall be deemed given when made in writing and either (a) personally delivered, (b) deposited with the United States Postal Service, postage prepaid, by registered or certified mail, return receipt requested, or (c) delivered by a nationally recognized overnight delivery service providing proof of delivery, or (d) by e-mail with a confirmation of such email sent by another recognized notice method, properly addressed to the address or email address, as applicable, set forth in Section 1(l) of the Basic Lease Provisions (as the same may be changed by giving written notice of the change not less than ten (10) days prior to effective date of the change). Refusal to accept delivery or inability to deliver as a result of a change of address as to which no notice was properly given shall be deemed receipt. Any notice required or permitted to be given or served by Landlord or Tenant may be given by either an agent, law firm or attorney acting on behalf of Landlord or Tenant.

30. Brokers. Neither Landlord nor Tenant has engaged any brokers who would be entitled to any commission or fee based on the execution of this Lease, other than those set forth in Section 1(n) (the "Brokers") who will be paid by Landlord pursuant to a separate agreement. Neither Landlord nor Tenant has had any conversations or negotiations with any broker except the Brokers concerning the leasing of the Demised Premises to Tenant. Landlord and Tenant hereby indemnify each other against and from any claims for any brokerage commissions (except those payable to the Brokers, all of which are payable by Landlord) and all costs, expenses and liabilities in connection therewith, including, without limitation, attorneys' fees and expenses, for any breach of the foregoing. The foregoing indemnification shall survive the termination of this Lease for any reason.

31. Assignment and Subleasing.

(a) Tenant may not assign, mortgage, pledge, encumber or otherwise transfer this Lease, or any interest hereunder, or sublet the Demised Premises, in whole or in part, without on each occasion first obtaining the prior express written consent of Landlord, which consent shall not, except as hereinafter provided, be unreasonably withheld. Any change in control of Tenant due to a merger, consolidation, stock transfer or asset sale shall be considered an assignment or transfer which requires Landlord's prior written consent. For purposes of this Section 31, by way of example and not limitation, Landlord shall be deemed to have reasonably withheld consent if Landlord determines (i) that the prospective assignee or subtenant is not of a financial strength similar to Tenant as of the Lease Date; (ii) that the prospective assignee or subtenant has a poor business reputation; (iii) that the proposed use of the Demised Premises by such prospective assignee or subtenant (including, without limitation, a use involving the use or handling of Hazardous Substances) will negatively affect the value or marketability of the Building or the Property; (iv) that the prospective assignee or subtenant is a current tenant in the Property or is a bona-fide third party prospective tenant; (v) that the prospective assignee or subtenant is a "Specially Designated National" or "Blocked Person" or other similar designations arising from any anti-money laundering measures described in Section 37; or (vi) that the prospective assignee or subtenant is (1) owned or controlled (directly or indirectly) by, any foreign individual, government, or entity associated with a country designated as a threat or posing a national security risk under Texas Senate Bill 17, or (2) prohibited from acquiring a leasehold interest in real property under Texas Senate Bill 17 or any successor or related law prohibiting foreign ownership or leasehold interests in real property in Texas. Permitted subtenants or assignees shall become liable directly to Landlord for all obligations of Tenant hereunder, without, however, relieving Tenant of any of its liability hereunder; provided, however, that so long as no Event of Default has occurred and is continuing, Landlord shall not collect any rent directly from any subtenant of less than the entire Demised Premises or otherwise interfere with the exercise by Tenant of its rights as sublandlord under the sublease. No assignment, mortgaging, subletting or use or occupancy by others shall in any way be construed to relieve Tenant from any of its liability hereunder to pay Base Rent, Additional Rent and all other sums payable by Tenant hereunder or to perform its obligations hereunder (which shall in every instance continue as the liability and obligation of a principal and not a surety), or from thereafter obtaining the express consent of Landlord to any other or further assignment, mortgaging or subletting of this Lease.

(b) If Tenant desires to assign this Lease or sublet the Demised Premises (or any part thereof), Tenant shall give Landlord written notice no later than thirty (30) days in advance of the proposed effective date of any proposed assignment or sublease, specifying (i) the name and business of the proposed assignee or sublessee, (ii) a detailed description of the intended use of the Demised Premises by the proposed assignee or sublessee, with

particular detail regarding any Hazardous Substances which will be used in any manner at the Demised Premises; (iii) the amount and location of the space within the Demised Premises proposed to be so subleased, (iv) the proposed effective date and duration of the assignment or subletting, and (v) the proposed rent or consideration to be paid to Tenant by such assignee or sublessee. Tenant shall promptly supply Landlord with financial statements and other information as Landlord may reasonably request to evaluate the proposed assignment or sublease.

(c) Landlord shall have a period of thirty (30) days following receipt of such notice and other information requested by Landlord within which to notify Tenant in writing that Landlord elects: (i) to permit Tenant to assign or sublet such space; or (ii) to refuse to consent to Tenant's assignment or subleasing of such space and to continue this Lease in full force and effect as to the entire Demised Premises. If Landlord does not respond Tenant's request for consent in writing within said thirty (30) day period, and such failure to respond continues for more than five (5) additional business days following a second written request for consent from Tenant, Landlord will be deemed to have consented to Tenant's proposed assignment or sublease. Tenant agrees to reimburse Landlord for all legal fees and any other reasonable costs incurred by Landlord in connection with any requested assignment or subletting. Tenant shall deliver to Landlord copies of all documents executed in connection with any permitted assignment or subletting, which documents shall be in form and substance reasonably satisfactory to Landlord and which shall require such assignee to assume performance of all terms of this Lease on Tenant's part to be performed. No acceptance by Landlord of any rent or any other sum of money from any assignee, sublessee or other category of transferee shall be deemed to constitute Landlord's consent to any assignment, sublease, or transfer.

(d) Any attempted assignment or sublease by Tenant in violation of the terms and provisions of this Section 31 shall be void and such act shall constitute an Event of Default. In no event shall any assignment, subletting or transfer, whether or not with Landlord's consent, relieve Tenant of its primary liability under this Lease for the entire Term, and Tenant shall in no way be released from the full and complete performance of all the terms hereof. If Landlord takes possession of the Demised Premises before the expiration of the Term of this Lease, Landlord shall have the right, at its option to take over any sublease of the Demised Premises or any portion thereof and such subtenant shall attorn to Landlord, as its landlord, under all the terms and obligations of such sublease occurring from and after such date, but excluding previous acts, omissions, negligence or defaults of Tenant and any repair or obligation in excess of available net insurance proceeds or condemnation award. Tenant shall reimburse Landlord for any costs incurred by Landlord in connection with any sublease including any alterations to the Demised Premises or any other portion of the Property undertaken in consequence thereof.

(e) Landlord shall have the right to sell, transfer, assign, pledge, and convey all or any part of the Land and the Building and all of Landlord's rights under this Lease. In the event Landlord assigns or otherwise conveys its rights under this Lease, Landlord shall be entirely freed and released from any obligations arising or accruing under this Lease after the date of such assignment or conveyance, and Tenant agrees to look solely to Landlord's successor in interest for performance of such obligations.

(f) If Tenant transfers or assigns this Lease or sublets the Demised Premises in whole or in part to any permitted assignee or sublessee, Landlord shall be entitled to receive, as Additional Rent, fifty percent (50%) of any "Rental Profit" (as hereinafter defined) received by Tenant. The term "Rental Profit" shall mean the amount, calculated on a per square foot basis and not on an aggregate or cumulative basis, by which (i) the total rental and other consideration (of any nature whatsoever and however characterized) paid or delivered to Tenant by an assignee of the interest of Tenant or sublessee of all or any part of the Demised Premises, for the purpose of compensating Tenant directly or indirectly for the assignment or sublease, exceeds (ii) the Monthly Base Rent Installments paid by Tenant to Landlord pursuant to this Lease. By way of example, if Landlord grants the required written consent to a sublease by Tenant of 10,000 square feet of the Demised Premises and the total rental and other consideration received by Tenant for the sublease equals a per annum rate of \$4.50 per square foot and the per annum rate per square foot for the Annual Base Rent then payable by Tenant is \$4.25 per square foot, the Rental Profit would be \$0.25 per square foot and Landlord would be entitled to receive fifty percent (50%) of such Rental Profit concurrently with receipt of each payment by the sublessee to Tenant. Landlord shall be entitled to receive payment of fifty percent (50%) of all Rental Profit as and when payments are received by Tenant.

32. Termination or Expiration.

(a) No termination of this Lease prior to the normal ending thereof, by lapse of time or otherwise, shall affect Landlord's right to collect rent for the period prior to termination thereof.

(b) Upon the end of the Term or termination of Tenant's right to possession of the Demised Premises, Tenant will at once surrender and deliver up the Demised Premises to Landlord in Broom Clean, Good Condition and in compliance with the requirements of Exhibit "J" attached hereto and forming a part hereof, ordinary wear and tear (as is attributable to deterioration by reason of time and normal usage in spite of Tenant's reasonable care) excepted. As used herein (i) "Broom Clean" means free from all debris, dirt, rubbish, oil, grease, tire tracks, marking tape or other substances, inside the Demised Premises and outside of the Building, and (ii) "Good Condition" means that the Demised Premises are in good condition and in good working order. Any damage caused by removal of Tenant from the Property, including any damage caused by the removal of Tenant's Property under Section 32(c) below, shall be repaired and paid for by Tenant prior to the end of the Term.

(c) Upon the end of the Term or termination of Tenant's right to possession of the Demised Premises, Tenant shall remove all Tenant Changes unless Landlord has provided written notice to the contrary as provided in Section 19 hereof ("Required Removables") and all of Tenant's personal property and trade fixtures (including, without limitation, all of Tenant's equipment and all computer and telecommunications cabling and wiring both within and outside the Demised Premises and all signage), which removal shall be done in a good, workmanlike and lien-free manner, and upon such removal Tenant shall repair all damage to the Demised Premises, the Building and the Land caused by the installation or removal of such items (including the removal of any and all floor bolts) and

restore the Demised Premises to its condition prior to the installation of such items. If Tenant does not remove any items comprising Tenant's property or the Required Removables prior to the end of the Term, then Landlord may remove such items and repair and restore the Demised Premises and Tenant shall pay the cost of such removal, repair and restoration to Landlord upon demand. If Tenant does not remove any items comprising Tenant's property, or the Required Removables, in addition to any other remedies of Landlord, then Tenant shall be conclusively presumed to have conveyed such items to Landlord without further payment or credit by Landlord to Tenant or, at Landlord's sole option, such items shall be deemed abandoned, in which event Landlord may cause such items to be stored, removed or disposed of at Tenant's expense, without notice to Tenant and without obligation to compensate Tenant.

(d) If Tenant remains in possession of the Demised Premises after expiration of the Term, with or without Landlord's acquiescence and without any express agreement of the parties, Tenant shall be a tenant-at-sufferance at one hundred fifty percent (150%) of the Base Rent in effect at the end of the Term. Tenant shall also continue to pay all other Additional Rent due hereunder, and there shall be no renewal of this Lease by operation of law. Any and all options to extend or renew set forth in this Lease, if any, shall be deemed terminated and shall be of no further effect as of the first day Tenant holds over. In addition to the foregoing, in the event that Tenant remains in possession of the Demised Premises after the expiration or early termination of the Term, Tenant shall be liable to Landlord for all costs, losses, claims, liabilities and damages, direct and consequential, incurred by Landlord as a result of such holdover. No receipt of money by Landlord from Tenant after the termination of this Lease or Tenant's right of possession of the Demised Premises shall reinstate, continue or extend the Term or Tenant's right of possession. In no way shall the increased Base Rent set forth herein or any other monetary or non-monetary requirements set forth in this Lease be construed to constitute liquidated damages for Landlord's losses resulting from Tenant's holdover. Notwithstanding the foregoing or anything to the contrary in this Lease, in no event shall either Landlord or Tenant be liable to the other for any consequential, indirect, lost profits, punitive or special damages in connection with any claim arising out of or in any way related to this Lease, provided, however that the foregoing limitation shall not apply to a claim made by Landlord against Tenant alleging Tenant's violation of the provisions of Sections 16 or this Section 32(d) of this Lease or claims arising from the gross negligence or willful misconduct of the other party.

33. Late Payments. In the event any installment of rent, inclusive of Base Rent, or Additional Rent or other sums due hereunder, if any, is not paid when due, Tenant shall pay a late charge equal to ten percent (10%) of such past due amount. Any installment of Base Rent, Additional Rent or other sums due hereunder, which is not paid within thirty (30) calendar days after the date when such rent is due shall, after such thirty (30) day period, bear interest at the Interest Rate. The term "Interest Rate," as used in this Lease, shall mean a per annum rate of interest equal to the greater of (i) five percent (5%) in excess of the Prime Rate (as herein defined) in effect from time to time and (ii) ten percent (10%). The term "Prime Rate", as used in this Lease, shall mean the prime rate of interest as then most recently published in The Wall Street Journal section on "Money Rates".

34. Rules and Regulations. Tenant agrees to abide by the rules and regulations set forth on Exhibit "F" attached hereto, as well as other rules and regulations reasonably promulgated by Landlord from time to time and documented in writing provided to all tenants, so long as such other rules and regulations are uniformly enforced against all tenants of Landlord in the Building and do not materially diminish or impair the rights of Tenant under this Lease.

35. Miscellaneous.

(a) The parties hereto hereby covenant and agree that Landlord shall receive the Base Rent and Additional Rent and all other sums payable by Tenant hereinabove provided as income from the Demised Premises, without any abatement (except as expressly provided in this Lease), reduction, set-off, counterclaim, defense or deduction whatsoever.

(b) If any clause or provision of this Lease is determined to be illegal, invalid or unenforceable under present or future laws effective during the Term, then and in that event, it is the intention of the parties hereto that the remainder of this Lease shall not be affected thereby, and that in lieu of such illegal, invalid or unenforceable clause or provision there shall be substituted a clause or provision as similar in terms to such illegal, invalid or unenforceable clause or provision as may be possible and be legal, valid and enforceable.

(c) All rights, powers, and privileges conferred hereunder upon the parties hereto shall be cumulative, but not restrictive to those given by law.

(d) Time is of the essence of this Lease.

(e) No failure of Landlord or Tenant to exercise any power given Landlord or Tenant hereunder or to insist upon strict compliance by Landlord or Tenant with its obligations hereunder, and no custom or practice of the parties at variance with the terms hereof shall constitute a waiver of Landlord's or Tenant's rights to demand exact compliance with the terms hereof.

(f) This Lease, together with its exhibits, contains all agreements of the parties to this Lease and supersedes any previous negotiations. There have been no representations made by Landlord or any of its representatives or understandings made between the parties other than those set forth in this Lease and its exhibits. This Lease may not be modified except by a written instrument duly executed by the parties to this Lease. Each of the parties to this Lease has executed this Lease relying solely on its own judgment with the benefit of the advice of its own attorneys and/or brokers (or having decided to proceed without benefit of the advice of its own attorneys and/or brokers), and each party hereby disclaims reliance upon any statement or representation of the other party or any agent of such other party unless such statement or representation is expressly set forth in this Lease. The parties hereby represent and warrant to each other that they have completely read and fully understand each of the terms and

provisions of this Lease, and that they have executed same based on their own judgment with the benefit of the advice of their own attorneys, and of their own free will, and without reliance upon any statement or representation of others not specifically set forth in writing in this Lease. Whenever the words “include”, “includes”, or “including” are used in this Lease, they shall be deemed to be followed by the words “without limitation”, and, whenever the circumstances or the context requires, the singular shall be construed as the plural, the masculine shall be construed as the feminine and/or the neuter and vice versa. Any future amendment to this Lease must be in writing and signed by the parties hereto.

(g) Tenant agrees to execute, upon request of Landlord, a memorandum of this Lease in recordable form. Under no circumstances shall Tenant have the right to record this Lease or a memorandum of this Lease.

(h) The captions of this Lease are for convenience only and are not a part of this Lease, and do not in any way define, limit, describe or amplify the terms or provisions of this Lease or the scope or intent thereof.

(i) This Lease may be executed in multiple counterparts (including by facsimile, e-mail and other electronic means), each of which shall constitute an original, but all of which taken together shall constitute one and the same agreement.

(j) This Lease shall be interpreted under the laws of the State where the Demised Premises are located. To the full extent permitted by Governmental Requirements, Landlord and Tenant agree the federal and state courts of the state in which the Demised Premises are located shall have exclusive jurisdiction over any matter relating to or arising from this Lease and the parties’ rights and obligations under this Lease.

(k) The parties acknowledge that this Lease is the result of negotiations between the parties, and in construing any ambiguity hereunder no presumption shall be made in favor of either party. No inference shall be made from any item which has been stricken from this Lease other than the deletion of such item.

(l) If Tenant is comprised of more than one (1) party, each such party shall be jointly and severally liable for Tenant’s obligations under this Lease. All unperformed obligations of Tenant hereunder not fully performed at the end of the Term shall survive the end of the Term, including payment obligations with respect to Rent and all obligations concerning the condition and repair of the Demised Premises.

(m) Tenant agrees and understands that Landlord shall have the right (provided that the exercise of Landlord’s rights does not adversely affect Tenant’s use and occupancy of the Demised Premises or subject Tenant to additional costs), without Tenant’s consent, to place solar or other electric generating systems on the Property (including, but not limited to, on the roof of the Building) and enter into a lease for such portion of the Property on which the electric generating system is installed. Upon receipt of written request from Landlord, Tenant, shall deliver to Landlord data regarding the electricity consumed in the operation of the Demised Premises (the “Energy Data”) for purposes of regulatory compliance, manual and automated benchmarking, energy management, building environmental performance labeling and other related purposes, including but not limited to the Environmental Protection Agency’s Energy Star rating system and other energy benchmarking systems. Landlord shall use commercially reasonable efforts to utilize automated data transmittal services offered by utility companies to access the Energy Data. Landlord shall not publicly disclose Energy Data without Tenant’s prior written consent which shall not be unreasonably withheld, conditioned or delayed. Landlord may, however, disclose Energy Data that has been modified, combined or aggregated in a manner such that the resulting data is not exclusively attributable to Tenant.

36. Lease Date. For purposes of this Lease, the term “Lease Date” shall mean the later date upon which this Lease is signed by Landlord and Tenant.

37. Additional Tenant Representations.

(a) Anti-Terrorism Representations.

(i) Tenant hereby (1) represents and warrants to Landlord that Tenant is not a person or entity with whom Landlord is restricted from doing business with under the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 1002, H.R. 3162, Public Law 107-56 (commonly known as the “USA Patriot Act”) and Executive Order Number 13224 on Terrorism Financing, effective September 24, 2001 and regulations promulgated pursuant thereto (collectively, “Anti-Terrorism Laws”), including without limitation persons and entities named on the Office of Foreign Asset Control Specially Designated and Blocked Persons List (collectively “Prohibited Persons”) and (2) covenants and agrees that at no time during the Term will Tenant become a Prohibited Person.

(ii) Tenant represents and warrants to Landlord that to the best of its knowledge, Tenant is not currently engaged in any transactions or dealings, or otherwise associated with, any Prohibited Persons in connection with the use or occupancy of the Demised Premises and covenants and agrees that Tenant will not in the future during the Term engage in any transactions or dealings, or be otherwise associated with, any Prohibited Persons in connection with the use or occupancy of the Demised Premises.

(b) Texas Senate Bill 17 (2025). Subchapter H, Chapter 5, Texas Property Code (enacted by SB 17, 89th Texas Legislature, Regular Session (2025)) (“Texas Senate Bill 17”), restricts and regulates the purchase or acquisition of real property (including leasehold interests) by certain foreign individuals, entities, or governments associated with countries designated either by the U.S. Director of National Intelligence as posing a national security risk in recent Annual Threat Assessments of the U.S. Intelligence Community or by the Texas Governor as posing a risk to the national security of the public. As of the Effective Date, the designated countries include China, Russia,

Iran, and North Korea. Tenant certifies, represents, and warrants to Landlord that (i) Tenant is not, and is not owned or controlled (directly or indirectly) by, any foreign individual, government, or entity associated with a country designated as a threat or posing a national security risk under Texas Senate Bill 17; (ii) Tenant is not prohibited from acquiring a leasehold interest in the Demised Premises under Texas Senate Bill 17 (as amended from time to time), and (iii) Tenant’s entry into this Lease does not violate the provisions of Texas Senate Bill 17 (as amended from time to time), or any successor or related law prohibiting foreign ownership or leasehold interests in real property in Texas. On the written request of Landlord, Tenant shall provide to Landlord such documentation or certifications as may be reasonably required by Landlord to confirm Tenant’s compliance with Texas Senate Bill 17.

(c) Breach of any of these representations, warranties or covenants constitutes a material breach of this Lease and shall entitle Landlord to any and all remedies available hereunder, or at law or in equity.

38. Authority. If Tenant is not a natural person, Tenant shall cause its corporate secretary, general partner, member or manager, as applicable, to execute the certificate attached hereto as Exhibit “G”. Tenant is authorized by all required corporate, limited liability company or partnership action to enter into this Lease and the individual(s) signing this Lease on behalf of Tenant are each authorized to bind Tenant to its terms. The individual(s) signing this Lease on behalf of Landlord are each authorized to bind Landlord to its terms.

39. JURY TRIAL WAIVER. LANDLORD AND TENANT, TO THE FULLEST EXTENT THAT THEY MAY LAWFULLY DO SO, HEREBY WAIVE TRIAL BY JURY IN ANY ACTION OR PROCEEDING BROUGHT BY ANY PARTY TO THIS LEASE WITH RESPECT TO THIS LEASE, THE DEMISED PREMISES, OR ANY OTHER MATTER RELATED TO THIS LEASE OR THE DEMISED PREMISES.

40. MISCELLANEOUS TENANT WAIVERS.

(a) **TENANT HEREBY WAIVES, TO THE FULLEST EXTENT PERMITTED UNDER APPLICABLE LAW, ITS RIGHTS AND REMEDIES UNDER THE TEXAS DECEPTIVE TRADE PRACTICES ACT AS NOW IN FORCE AND FROM TIME TO TIME HEREAFTER AMENDED.**

(b) **WITHOUT LIMITING ANYTHING SET FORTH IN THIS LEASE TO THE CONTRARY, TO THE FULLEST EXTENT PERMITTED BY LAW, TENANT HEREBY WAIVES ALL RIGHTS AND BENEFITS OF TENANT UNDER SECTION 93.002 (B), (C), (E), (F), AND (G)(1) (WITH RESPECT TO THE RIGHT AND REMEDY OF TENANT TO TERMINATE THE LEASE) AND (2) OF THE TEXAS PROPERTY CODE, AS SUCH SECTION NOW EXISTS OR AS IT MAY BE HEREAFTER AMENDED OR SUCCEEDED; PROVIDED, HOWEVER, TENANT DOES NOT WAIVE ANY RIGHTS IT HAS UNDER THIS LEASE OR SECTION 93.003 OF THE TEXAS PROPERTY CODE (FOR A VIOLATION BY LANDLORD OF ANY UNWAIVED PROVISIONS UNDER SECTION 93.002 OR WITH RESPECT TO AN UNLAWFUL LOCKOUT UNDER THIS LEASE). NOTWITHSTANDING ANYTHING SET FORTH IN THIS LEASE OR IN SECTION 93.003 TO THE CONTRARY, TENANT SHALL GIVE LANDLORD AT LEAST TEN (10) BUSINESS DAYS’ ADVANCE WRITTEN NOTICE PRIOR TO EXERCISING ANY OF ITS RIGHTS UNDER SECTION 93.003.**

41. Intentionally Omitted.

42. No Implied Warranty. LANDLORD AND TENANT EXPRESSLY DISCLAIM ANY IMPLIED WARRANTY THAT THE DEMISED PREMISES ARE SUITABLE FOR TENANT’S INTENDED COMMERCIAL PURPOSE, AND TENANT’S OBLIGATION TO PAY RENT HEREUNDER IS NOT DEPENDENT UPON THE CONDITION OF THE DEMISED PREMISES OR THE PERFORMANCE BY LANDLORD OF ITS OBLIGATIONS HEREUNDER, AND, EXCEPT AS OTHERWISE EXPRESSLY PROVIDED HEREIN, TENANT SHALL CONTINUE TO PAY THE RENT, WITHOUT ABATEMENT, DEMAND, SETOFF OR DEDUCTION, NOTWITHSTANDING ANY BREACH BY LANDLORD OF ITS DUTIES OR OBLIGATIONS HEREUNDER, WHETHER EXPRESS OR IMPLIED.

43. Telecommunications. Tenant and its telecommunications companies, including local exchange telecommunications companies and alternative access vendor services companies, shall have no right of access to and within the Building, for the installation and operation of telecommunications systems, including voice, video, data, Internet, and any other services provided over wire, fiber optic, microwave, wireless, and any other transmission systems (“Telecommunications Services”), for part or all of Tenant’s telecommunications within the Building and from the Building to any other location without Landlord’s prior written consent. All providers of Telecommunications Services shall be required to comply with the rules and regulations of the Building, applicable Governmental Requirements and Landlord’s policies and practices for the Building. Tenant acknowledges that Landlord shall not be required to provide or arrange for any Telecommunications Services and that Landlord shall have no liability to Tenant in connection with the installation, operation or maintenance of Telecommunications Services or any equipment or facilities relating thereto. Tenant, at its cost and for its own account, shall be solely responsible for obtaining all Telecommunications Services.

44. Electronic Signatures. Each party agrees that the electronic signatures, whether digital or encrypted, of the parties included in this Lease are intended to authenticate this writing and to have the same force and effect as manual signatures. As used herein “electronic signature” means any electronic sound, symbol, or process attached to or logically associated with a record and executed and adopted by a party with the intent to sign such record, including DocuSign, facsimile, pdf or email electronic signatures, pursuant to the Texas Uniform Electronic Transactions Act (Tex. Bus. & Com. Code Ann. § 322.001 et seq.), as amended from time to time.

45. Additional Provisions. The Additional Provisions, if any, attached hereto as Exhibit “I” are incorporated herein and made a part hereof, and to the extent of any conflict between the foregoing provisions and the Additional Provisions, the Additional Provisions shall control.

46. Outdoor Storage. Subject to the terms of this Section 46, Tenant shall have the right to use such areas outside the Building as may be approved in writing by Landlord (the “Outdoor Storage Area”) for the storage of Tenant’s products and equipment (the “Permitted Outdoor Use”). Tenant acknowledges and agrees that (i) Tenant’s use of the Outdoor Storage Area is subject to the terms and conditions of this Lease, (ii) Tenant shall comply with all applicable laws, statutes, codes, ordinances and regulations governing or applicable to the Permitted Outdoor Use in the Outdoor Storage Area; and (iii) Tenant is responsible for obtaining, at its sole cost and expense, all required consents and permits from any applicable governmental authorities. Tenant shall provide Landlord with copies of all applications and submissions associated with the proposed Outdoor Storage prior to submission to any governmental body for Landlord’s review and approval and copies of all permits and approvals received by applicable governmental authorities. Tenant acknowledges that (i) Landlord makes no (and does hereby expressly disclaim any) covenant, representation or warranty that any use of any areas outside of the Demised Premises for storage purposes by Tenant is allowed by or is in compliance with any applicable laws, regulations, and/or ordinance now or hereinafter affecting the Demised Premises; and (ii) Landlord (1) has no obligation or responsibility for the safety of any equipment or materials stored in the Outdoor Storage Area and (2) shall not be liable for any damage to, destruction or theft of such property stored in the Outdoor Storage Area and such property shall be stored there at Tenant’s sole risk. Tenant shall not interfere with the rights of any or all of Landlord, other tenants or licensees, or any other person entitled to use the Common Areas, and shall not impede access through or to the parking areas or driveways of the Property. Without limitation of the foregoing, Tenant shall not park or store any vehicles or trailers on or around, or conduct truck loading and unloading activities in or around, the Outdoor Storage Area in a manner that unreasonably disturbs, disrupts or prevents the use of the Common Areas by Landlord, other tenants or licensees or other persons entitled to use the Common Areas. Tenant shall indemnify, defend and hold Landlord and its agents harmless from and against any and all costs, expenses (including without limitation reasonable attorneys’ fees), claims, demands, liabilities, fines, and penalties sustained by any of them arising out of or relating to Tenant’s or its representatives’, employees’, agents’, or contractors’ (x) use of the Outdoor Storage Area and (y) the storage or removal of such equipment and materials in or from the Outdoor Storage Area.

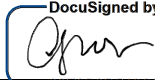
[Signature Page to Follow]

IN WITNESS WHEREOF, the parties hereto have hereunto set their hands, the day and year written next to each party’s signature below.

LANDLORD:

MLRP 13755 Diplomat LLC,
a Delaware limited liability company

Date: 3/5/2026

By: ML Realty Partners, LLC
Its: Sole Member
DocuSigned by:

By: _____
Name: Nancy Kozinski
Title: Chief Operating Officer

TENANT:

TDIndustries, Inc.,
a Texas corporation

Date: 3/3/2026

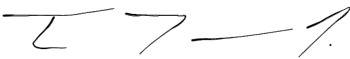
By: 
Name: Frank Musolino
Title: CEO

EXHIBIT A

Demised Premises/Property – Site Plan

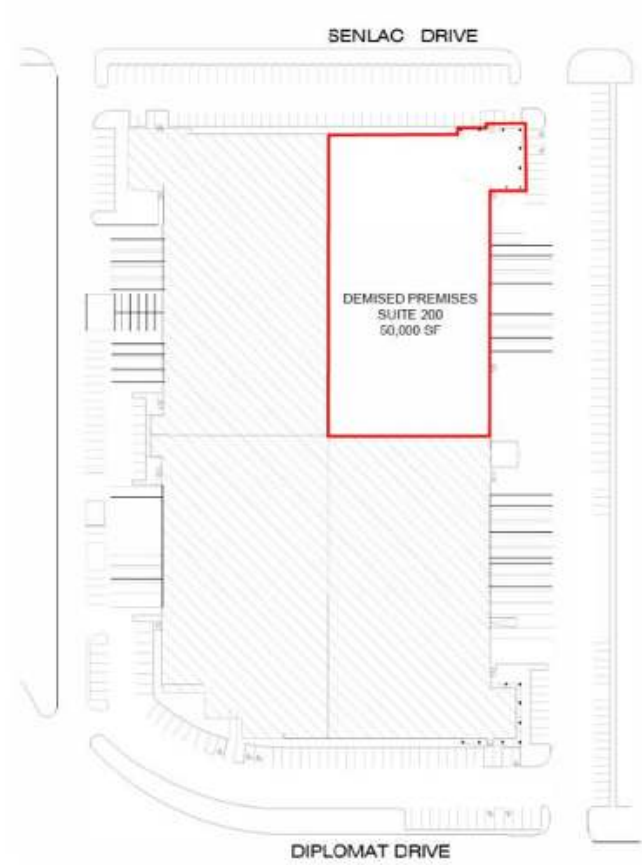


EXHIBIT B

Intentionally Omitted

EXHIBIT C

Intentionally Omitted

EXHIBIT D

TERM COMMENCEMENT LETTER

Re: Unit ____

Lease Dated:

Dear Tenant,

Please be advised that the Commencement Date, as defined in the Lease, shall be _____, 2026, which, subject to the Abatement Period (as defined in the Lease), is the first date upon which Rent for the Demised Premises will be due and payable. If the Commencement Date is other than the first day of a calendar month, Tenant shall pay a prorated portion of the Rent on a per diem basis, and the Term of this Lease shall run for the unexpired portion of such month, plus for sixty-three (63) months, beginning with the first day of the ensuing month, and thus, the Expiration Date of the Lease shall be _____ and the Lease is deemed amended to reflect the actual Expiration Date.

Please have an executed copy of this letter returned to the undersigned within ten (10) days of the date hereof to confirm your acknowledgment of the Commencement Date. Tenant’s failure to return an executed copy of this letter to Landlord within such ten day period shall be deemed to be Tenant’s acknowledgment of the Commencement Date. Please contact the undersigned in order to obtain the keys and other materials necessary to gain occupancy of the Demised Premises.

We look forward to having you as a tenant.

Very truly yours,

MLRP 13755 Diplomat LLC,
a Delaware limited liability company

By: ML Realty Partners, LLC
Its: Sole Member

By: _____
Its: _____
Name: _____

Acknowledged this ____ day of
_____, 20____

_____,
a _____

By: _____
Its: _____
Name: _____

EXHIBIT E

Estoppel Certificate

To: _____
[“Purchaser”/”Lender”/”Landlord”, delete as applicable]

DEFINITIONS:

Lease: Lease of the Demised Premises dated as of the Lease Date between Landlord and Tenant

Demised Premises: _____

Lease Date: _____

Landlord: _____

Tenant: _____

Commencement Date: _____

Annual Base Rent: _____

Term: _____

Expiration Date: _____

Permitted Use: _____

Security Deposit: _____

Tenant’s Address for Notices: _____

Guarantor(s): _____

Definitions: All terms used herein and not defined herein shall have the meaning set forth in the Lease.

The undersigned Tenant under the Lease hereby certifies, represents, confirms and agrees, in favor of [Landlord/Purchaser/Lender] the following:

- 1. The Lease has not been canceled, modified, assigned, extended or amended and contains the entire agreement between Landlord and Tenant.
- 2. Rent has been paid to _____. There is no prepaid Rent.
- 3. The current total monthly payment (including Base Rent, Taxes and Operating Expenses) is _____ (Base Rent), _____ (Taxes) and _____ (Operating Expenses).
- 4. Tenant took possession of the Demised Premises on the Commencement Date. Tenant commenced to pay Rent on the Commencement Date, in the amount of the Annual Base Rent. Tenant’s current Annual Base Rent is as set forth above, is payable in equal monthly installments and is subject to escalation and the payment of other charges in accordance with the terms and provisions of the Lease. No “discounts”, “free rent”, “discounted rent” or “abatements of rent” have been agreed to or are in effect, except as provided in this Lease.
- 5. The Lease is for the Term set forth above ending on the Expiration Date, [and Tenant has _____ year(s) renewal option(s)].
- 6. All improvements required to be made by Landlord, if any, have been completed and furnished, and Tenant has accepted the Demised Premises.
- 7. The Lease is in full force and effect and Tenant has no claims, liens, charges or credits against Landlord or offsets against Rent.
- 8. Tenant has not assigned or sublet the Lease, nor does Tenant hold the Demised Premises under assignment or sublease.
- 9. There are no other agreements, written or oral, between Tenant and Landlord with respect to the Lease and/or the Demised Premises.

- 10. Landlord is not in any respect in default in the performance of the terms and provisions of the Lease, nor is there now any fact or condition which, with notice or lapse of time or both, would become such a default.
- 11. The Demised Premises will be used only for the Permitted Use set forth above.
- 12. Tenant is maintaining all insurance policies that the Lease requires Tenant to maintain and all insurance policies comply with the required coverage amounts.
- 13. Tenant is not in any respect in default under the terms and provisions of the Lease (nor is there now any fact or condition which, with notice or lapse of time or both, would become such a default).
- 14. Tenant (i) does not have any option or preferential right to purchase all or any part of the Building, Land or Property; and (ii) does not have any right, title or interest with respect to the Demised Premises other than as a tenant under the Lease.
- 15. Tenant has paid Landlord a security deposit in the amount of the Security Deposit.
- 16. We understand that [Purchaser][Lender] is planning to [purchase][finance] the Building, Land and/or Property on which the Demised Premises is located, and we agree to make all payments required under the Lease to [Purchaser][Lender] upon our receipt of notice from Landlord and/or [Purchaser][Lender]. Further, upon receipt of such notice, we will thereafter look to [Purchaser][Lender] and not Landlord as the landlord under the Lease. We agree to give all notices required to be given by us to Landlord under the Lease to [Purchaser][Lender] upon our receipt of said notice.
- 17. The statements contained herein may be relied upon by [Landlord/Purchaser/Lender].
- 18. If Tenant is a Corporation, the undersigned is a duly appointed officer of the corporation signing this Agreement, and is the incumbent in the office indicated under his or her name. If Tenant is a partnership, limited liability company or joint venture, the undersigned is a duly appointed partner, member or officer of the partnership or joint venture signing this certificate. In any event, the undersigned individual is duly authorized to execute this Agreement on behalf of Tenant.
- 19. Tenant (a) executes this certificate with the understanding that [Purchaser][Lender] is contemplating [purchasing][financing] the Building, Land and/or the Property on which the Demised Premises is located, and that if [Purchaser][Lender] [purchases][finances] the Building, Land and/or the Property on which the Demised Premises is located, [Purchaser][Lender] will do so in material reliance on this certificate, and (b) agrees that the certifications and representations made herein shall survive such acquisition.
- 20. The current address to which all notices to Tenant as required under the lease should be sent is the Tenant’s Address for Notices.
- 21. Landlord’s rights hereunder shall inure to its successors and assigns.

IN WITNESS WHEREOF, Tenant has executed this estoppel certificate as of this ____ day of _____, 20__.

By: _____
Name: _____
Title: _____

EXHIBIT F

Rules And Regulations

These Rules and Regulations have been adopted by Landlord for the mutual benefit and protection of all the tenants of the Building in order to insure the safety, care and cleanliness of the Building and the preservation of order therein.

In the event of any conflict between the terms of these rules and regulations and the express provisions of the Lease, the express, applicable provisions of the Lease shall control. Landlord reserves the right, without the approval of Tenant, to rescind, add to and amend any rules or regulations, to add new reasonable rules or regulations and to waive any rules or regulations with respect to any tenant or tenants. Tenant shall provide a copy of these rules and regulations to each of its employees to facilitate compliance with these standards.

(1) The sidewalks, walks, plaza entries, corridors, ramps, and staircases of the Property shall not be obstructed, and shall not be used by Tenant, or the employees, agents, servants, visitors or invitees of Tenant, for any purpose other than ingress and egress to and from the Demised Premises. No skateboards, roller skates, roller blades or similar items shall be used in or about the Property. No tenant and no employees of any tenant shall go upon the roof of the Building without the consent of Landlord.

(2) No awnings or other projections shall be attached to the outside walls of the Building without prior approval by Landlord.

(3) The plumbing fixtures shall not be used for any purpose other than those for which they were constructed, and no sweepings, rubbish, rags or other substances, including Hazardous Substances, shall be thrown therein.

(4) No tenant shall cause or permit any objectionable or offensive noise or odors to be emitted from the Demised Premises.

(5) The Demised Premises shall not be used for (i) an auction, "fire sale," "liquidation sale," "going out of business sale" or any similar activity, (ii) lodging or sleeping or (iii) for any immoral or illegal purposes.

(6) No tenant shall make, or permit to be made any unseemly or disturbing noises, sounds or vibrations or disturb or interfere with tenants of this or neighboring buildings or premises or those having business with them.

(7) Each tenant must, upon the termination of this tenancy, return to Landlord all keys for the Demised Premises and the Building, including those for any offices and rooms therein, either furnished to, or otherwise procured by, such tenant, and in the event of the loss of any keys so furnished, such tenant shall pay to Landlord the cost of replacing the same or of changing the lock or locks opened by such lost key if Landlord shall deem it necessary to make such change.

(8) Canvassing, soliciting and peddling in the Building and the Property are prohibited and each tenant shall cooperate to prevent such activity.

(9) Landlord will direct electricians as to where and how telephone or telegraph wires are to be introduced. No boring or cutting for wires or stringing of wires will be allowed without written consent of Landlord. The location of telephones, call boxes and other office equipment affixed to the Demised Premises shall be subject to the approval of Landlord.

(10) Parking spaces associated with the Building are intended for the exclusive use of passenger automobiles. Except for intermittent deliveries, no vehicles other than passenger automobiles may be parked in a parking space (other than spaces expressly designated by Landlord for truck parking) without the express written permission of Landlord. Trucks and/or trailers may only be parked at the loading docks for the Demised Premises or in designated areas of the Property and in other paved areas of the Property expressly designated for such purposes by Landlord. No trucks or other vehicles shall be parked, stored or used in the Demised Premises other than forklifts used in the ordinary course of Tenant's business as permitted under the Lease.

(11) No tenant shall use any area within the Property for storage purposes other than the interior of the Demised Premises.

(12) No freight, furniture or other large or bulky merchandise or equipment of any description will be received into the front doors of the Demised Premises except in such a manner, during such hours and using passageways as may be approved or designated by Landlord, and then only upon having been scheduled in advance. Any hand trucks, carryalls, or similar equipment used for the delivery or receipt of merchandise or equipment shall be equipped with rubber tires, side guards and such other safeguards as Landlord shall reasonably require. Although Landlord or its personnel may participate or assist in the supervision of such movement, Tenant assumes financial responsibility for all risks as to damage to articles moved and injury to persons or public engaged or not engaged in such movement, including any equipment, property or personnel of Landlord damaged or injured in connection with carrying out this service for Tenant.

(13) Landlord may prescribe weight limitations and determine the locations for safes and other heavy equipment or items, which shall in all cases be placed in the Building so as to distribute weight in a manner acceptable to Landlord which may include the use of such supporting devices as Landlord may require. All damage done to the Demised Premises by reason of a safe or any other article of Tenant's office equipment being on the Demised Premises

shall be repaired at the expense of Tenant. The time, routing and manner of moving safes or other heavy equipment or items shall be subject to prior written approval by Landlord.

(14) Tenant, or the employees, agents, servants, visitors or invitees of Tenant, shall not at any time place, leave or discard any rubbish, paper, articles or object of any kind whatsoever outside the doors of the Demised Premises or anywhere else on or about the Property, except in containers provided for such purposes.

(15) Tenant shall not place, or cause or allow to be placed, any sign, placard, picture, advertisement, notice or lettering whatsoever, in, about or on the exterior of the Demised Premises, Building or Property except in and at such places as may be designated by Landlord and consented to by Landlord in writing. Any such sign, placard, advertisement, picture, notice or lettering so placed without such consent may be removed by Landlord without notice to and at the expense of Tenant. All lettering and graphics on corridor and exterior doors shall conform to the building standards prescribed by Landlord.

(16) Tenant shall not place, or cause or allow to be placed, any satellite dish, communications equipment, computer or microwave receiving equipment, antennae or other similar equipment about or on the exterior of the Demised Premises, Building or Property without the express written consent of Landlord. Any such equipment so placed without approval of Landlord may be removed by Landlord without notice to and at the expense of Tenant.

(17) Landlord shall have the right to exclude any person from the Building or Property, and any person in the Building or Property will be subject to identification by employees and agents of Landlord. Any persons in or entering the Property shall be required to comply with the security policies of the Property. If Tenant desires additional security service for the Demised Premises, Tenant shall have the right (with advance written consent of Landlord) to obtain such additional service at Tenant's sole cost and expense. Tenant shall keep doors to unattended areas locked and shall otherwise exercise reasonable precautions to protect property from theft, loss or damage. Landlord shall not be responsible for the theft, loss or damage of any property or for any error with regard to the exclusion from or admission to the Property of any person. In case of invasion, mob, riot or public incitement, Landlord reserves the right to prevent access to the Property during the continuance of same.

(18) Tenant shall not bring or permit to be brought or kept in or on (a) the Building any firearms, or (b) the Demised Premises, Building or Property any inflammable, combustible, corrosive, caustic, poisonous, explosive substance, or electric vehicles or other batteries, tires or tire products; or cause or permit any odors to permeate in or emanate from the Demised Premises, or permit or suffer the Property to be occupied or used in a manner offensive or objectionable to Landlord or other occupants of the Property by reason of light, radiation, magnetism, noise, odors and/or vibrations.

(19) Tenant shall not mark, paint, drill into, or in any way deface any part of the Property, Building or the Demised Premises. No boring, driving of nails or screws, cutting or stringing of wires shall be permitted, except with the prior written consent of Landlord which consent shall not be unreasonably withheld or delayed. Tenant shall not install any resilient tile or similar floor covering in the Demised Premises except with the prior approval of Landlord.

(20) Tenant shall give immediate notice to Landlord in case of known theft, unauthorized solicitation or accident in the Demised Premises, Building or the Property, or of known defects therein or in any fixtures or equipment, or of any known emergency in the Property.

(21) Tenant shall not use the Demised Premises or permit the Demised Premises to be used for photographic, multilith or multigraph reproductions, except in connection with its own business and not as a service for others without Landlord's prior written permission.

(22) No animals or birds shall be brought or kept in or about the Property, with the exception of guide dogs accompanying visually handicapped persons. No portion of the Demised Premises shall at any time be used or occupied as sleeping or lodging quarters.

(23) The toilet rooms, urinals, wash bowls and other apparatus shall not be used for any purpose other than that for which they were constructed and no foreign substance of any kind whatsoever shall be thrown therein. The expenses of any breakage, stoppage or damage, resulting from the violation of this rule shall be borne by Tenant who (or whose employees or invitees) shall have caused such damage.

(24) Tenant agrees to place all indoor potted plants requiring water within a container capable of collecting any water overflow. Tenant agrees to use caution so that indoor plants do not damage or soil the Demised Premises.

(25) Tenant shall not park (and shall insure that Tenant's employees, agents, and invitees do not park) in any reserved parking space other than those reserved parking spaces, if any, specifically assigned to Tenant. Any vehicle improperly parked, or parked in any unauthorized parking area in the Property, shall be towed at the vehicle owner's expense and without further or additional notice.

(26) The Demised Premises and the Building are designated as nonsmoking in accordance with the Federal regulations commonly known as the Clean Air Act.

EXHIBIT G

Certificate of Authority

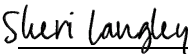
The undersigned, Sheri Langley, General Counsel of TDIndustries, Inc., a Texas Corporation ("Tenant"), hereby certifies as follows to MLRP 13755 Diplomat LLC as landlord, in connection with Tenant’s proposed lease of premises in 13755 Diplomat Drive., Suite 200, Farmers Branch, Texas, (the "Demised Premises”):

1. Tenant is duly organized, validly existing and in good standing under the laws of the State of Texas, and duly qualified to do business in the State of Texas.

2. That the following named persons, acting individually, are each authorized and empowered to negotiate and execute, on behalf of Tenant, a lease of the Demised Premises and that the signature opposite the name of each individual is an authentic signature:

Frank Musolino	CEO	
(name)	(title)	(signature)
(name)	(title)	(signature)
(name)	(title)	(signature)

3. That the foregoing authority was conferred upon the person(s) named above by the Delegation of Authority Policy of Tenant, at a duly convened meeting held December 14, 2023.



Sheri Langley, General Counsel

EXHIBIT H

Intentionally Omitted

EXHIBIT I
Additional Provisions

The Additional Provisions set forth herein and hereby incorporated into the body of the lease to which these Additional Provisions are attached (the “Lease”) and to the extent of any conflict between these Additional Provisions and express provisions of the Lease, these Additional Provisions shall govern and control.

1. Extension Option.

(a) Subject to Subparagraphs (b), (c), (d) and (e) below, Tenant shall have the option (the “Extension Option”) to extend the Term for the entire Demised Premises for one (1) period of five (5) years (the “Extension Term”). The Extension Term shall be upon the same terms contained in the Lease, excluding the provisions of this Paragraph; and any reference in the Lease to the “Term” of the Lease shall be deemed to include the Extension Term and apply thereto, unless it is expressly provided otherwise. Tenant shall have no additional extension options.

(b) The Base Rent during the first (1st) year of the Extension Term shall be at the Market Rate (defined herein) for such space commencing on the first day of the Extension Term. The Base Rent during each year, other than the first year, of the Extension Term shall be subject to Market Rate annual increases during the Extension Term in the same manner as such Base Rent was increased during the initial Term. “Market Rate” shall mean the then prevailing market negotiated rate for a comparable term commencing on the first day of the Extension Term for tenants of comparable size and creditworthiness for comparable space in the Building and comparable buildings within a five (5) mile radius of the Building, as reasonably determined by Landlord.

(c) To exercise the Extension Option, Tenant must deliver an initial non-binding notice to Landlord not less than two hundred seventy (270) days prior to the proposed commencement of the Extension Term. If Tenant provides Landlord with its non-binding notice of exercise of its Extension Option, then at some point not less than one hundred eighty (180) days prior to the proposed commencement of the Extension Term, Landlord shall calculate and inform Tenant of the Base Rent for the Demised Premises. Such calculation shall be final and shall not be recalculated at the actual commencement of the Extension Term, if any. Tenant shall give Landlord final binding notice of its intent to exercise the Extension Option by the later of (i) thirty (30) days after receiving Landlord’s calculation of Base Rent and (ii) one hundred eighty (180) days prior to the proposed commencement of the Extension Term. If Tenant fails to give either its initial non-binding notice or its final binding notice timely, Tenant will be deemed to have waived the Extension Option.

(d) Tenant may exercise the Extension Option, and the exercise thereof shall be effective, only if at the time of Tenant’s exercise of the Extension Option the Lease is in full force and effect and there are no events or circumstances which, with the giving of notice or the passage of time, or both, could constitute a default by Tenant of the Lease and inasmuch as the option is intended only for the benefit of the Tenant named in the Lease, the entire Demised Premises are occupied by the original Tenant named therein, and the Tenant has neither assigned the Lease or sublet any portion of the Demised Premises. Without limitation of the foregoing, no sublessee or assignee shall be entitled to exercise any right or option hereunder, and no exercise of any right or option hereunder by the original Tenant named herein shall be effective in the event that Tenant assigns the Lease or subleases all or any part of the Demised Premises.

(e) Notwithstanding any of the foregoing to the contrary, in the event Tenant gives Landlord initial non-binding notice of its intent to exercise the Extension Option, Tenant shall provide to Landlord copies of Tenant’s financial statements for the Tenant’s most recent fiscal year expiring prior to the date of such notice, together with additional financial statements or information relating to the period from the expiration of such fiscal year through the date of such notice as may be reasonably requested by Landlord, so that Landlord may evaluate Tenant’s ability to meet the financial obligations relating to the Extension Term. Landlord may condition the Extension Option on an increase in the Security Deposit, by giving Tenant notice thereof within thirty (30) days after submission of the aforescribed financial statements. In such event, Tenant shall then be required to increase the amount of the Security Deposit in the amount specified by Landlord, if applicable, within thirty (30) days after the date of such notice and if Tenant fails to do so, the Tenant’s rights with respect to the Extension Option shall be null and void and of no further force and effect.

2. Termination Option. Tenant may, at its option, terminate this Lease in its entirety (the “Termination Option”) effective on the last day of the thirty-ninth (39th) full calendar month of the Term (the “Termination Date”) by delivering: (a) simultaneously, no less than ninety (90) days prior to the Termination Date, (1) written notice of its intent to terminate this Lease (the “Termination Notice”) and (2) payment of the Termination Fee (as defined below) to Landlord. If Tenant fails to deliver the Termination Notice or any portion of the Termination Fee in a timely manner, Tenant will be deemed to have waived this Termination Option and it shall be null, void and of no further force and effect. If an Event of Default hereunder is continuing (i) as of the date Tenant delivers the Termination Notice, (ii) as of the date Tenant delivers the Termination Fee, (iii) at any time after delivery of the Termination Notice but prior to the Termination Date or (iv) as of the Termination Date, then at Landlord’s sole option, the Termination Option shall be void, and this Lease shall remain in full force and effect. If Tenant properly exercises its Termination Option, this Lease shall terminate as of the Termination Date. The “Termination Fee” shall be \$600,000.00. Tenant shall deliver the Demised Premises to Landlord on or before the effective Termination Date in accordance with the terms and conditions of this Lease the same as if such Termination Date were the original expiration date of the Term of this Lease. If Tenant properly exercises the Termination Option, such termination shall not affect Tenant’s liability for (1) post-Term adjustments in Taxes and Operating Expenses applicable to the period prior to the Termination Date; (2) obligations which accrue prior to the Termination Date; and (3) obligations which by their terms survive the expiration or earlier termination of the Term of the Lease.

EXHIBIT J

Broom Clean Condition and Repair Requirements

- All lighting is to be placed into good working order. This includes replacement of bulbs, ballasts, and lenses as needed.
- All truck doors and dock levelers should be serviced and placed in good operating order (including, but not limited to, overhead door springs, rollers, tracks and motorized door operator). This would include the necessary (a) replacement of any dented truck door panels, broken panels and cracked lumber, and (b) adjustment of door tension to insure proper operation. All door panels that are replaced shall be painted to match the Building standard.
- All structural steel columns in the warehouse and office should be inspected for damage, and must be repaired. Repairs of this nature shall be pre-approved by Landlord prior to implementation.
- HVAC system shall be in good working order, including the necessary replacement of any parts to return the unit to a well-maintained condition. This includes, but is not limited to, filters, thermostats, warehouse heaters and exhaust fans. Upon move-out, Landlord will have an exit inspection performed by a certified mechanical contractor to determine the condition of the HVAC system.
- All holes in the sheet rock walls shall be repaired prior to move-out. All walls shall be clean.
- The carpets and vinyl tiles shall be in a clean condition and shall not have any holes or chips in them. Flooring shall be free of excessive dust, dirt, grease, oil and stains. Cracks in concrete and asphalt shall be acceptable as long as they are ordinary wear and tear, and are not the result of misuse.
- Facilities shall be returned in a clean condition, including, but not limited to, the cleaning of the coffee bar, restroom areas, windows, and other portions of the Demised Premises.
- There shall be no protrusion of anchors from the warehouse floor and all holes shall be appropriately patched. If machinery/equipment is removed, the electrical lines shall be properly terminated at the nearest junction box.
- All exterior windows with cracks or breakage shall be replaced. All windows shall be clean.
- Tenant shall provide keys for all locks on the Demised Premises, including front doors, rear doors, and interior doors.
- All mechanical and electrical systems shall be left in a safe condition that conforms to code. Bare wires and dangerous installations shall be corrected to Landlord's reasonable satisfaction.
- All plumbing fixtures shall be in good working order, including, but not limited to, the water heater. Faucets and toilets shall not leak.
- All dock bumpers shall be left in place and well-secured.
- Drop grid ceiling shall be free of excessive dust from lack of changing filters. No ceiling tiles may be missing or damaged.
- All trash shall be removed from both inside and outside of the Building.
- All signs in front of Building and on glass entry door and rear door shall be removed.